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# THE PROVINCIAL MOTOR VEHICLES ORDINANCE, 1965, (WEST PAKISTAN ORDINANCE No. XIX OF 1965).

## CONTENTS

## CHAPTER-I
## PRELIMINARY Sections.

1. Short title and extent.
2. Definitions.

## CHAPTER-II
## LICENSING OF DRIVERS OF MOTOR VEHICLES

1. Prohibition on driving without licence.
2. Age limit in connection with driving of motor vehicles.
3. Owners of motor vehicles not to permit contravention of section 3 or section 4.
4. Restriction on use of licence by person other than holder.
5. Grant of licence.
6. Form and contents of licence.
7. Additions to licences.
8. Extent of validity of licences.
9. Currency of licences.
10. Renewal of licences.
11. Cancellation of licence on grounds of disease or disability.
12. Order refusing licences and appeals therefrom.
13. Licence to drive motor vehicles, the property of the Federal Government.

**Sections.**

1. Power of licensing authority to disqualify for holding a licence.
2. Power of Regional Transport Authority to disqualify.
3. Power of Court to order disqualification.
4. Effect of disqualification order.
5. Endorsement.
6. Transfer of endorsement and issue of licence free from endorsement.
7. Power to make rules.

## CHAPTER-III
## REGISTRATION OF MOTOR VEHICLES

1. Motor vehicles not to be driven without registration.
2. Registration where to be made.
3. Registration how to be made.
4. Temporary Registration.

5. Production of vehicle at the time of registration.
6. Refusal of registration.
7. Effectiveness in West Pakistan of registration.

30. Assignment of fresh registration mark on removal to another province.

1. Change of residence or place of business.
2. Transfer of ownership.

32-A Cancellation of certificate of registration of vehicles registered in a tribal Areas of Balochistan in certain cases.

1. Alteration in motor vehicle.
2. Suspension of registration.
3. Cancellation of registration.
4. Appeals.

**Sections.**

1. Special requirement for registration ot transport vehicles.
2. Special particulars to be recorded on registration of transport vehicles.
3. Certificate of fitness of transport vehicles.
4. Registration of vehicles, the property of the Federal Government
5. Special Registration of vehicles.
6. Application of Chapter-Ill to trailers.
7. Power to make rules.

## CHAPTER-IV
## CONTROL OF TRANSPORT VEHICLES.

1. Transport vehicles not to be used or driven without permit.
2. Power of Government to control Road Transport.
3. Transport authorities.
4. General provisions as to applications for. permits.
5. Application for stage carriage permit.
6. Procedure of Regional Transport Authority in considering applications for stage carriage permits.
7. Conditions for grant of stage carriage permits.
8. Applications for contract carriage permit.
9. Procedure of Regional Transport Authority in considering application for contract carriage permit.

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53. Power to restrict the number of contract carriage and impose conditions on contract carriage permits.

1. Application for private carrier's permit. .
2. Procedure of Regional Transport Authority in considering application for a Private carrier's permit.

**Sections.**

56. Application for public carrier's permit.
57. Procedure of Regional Transport Authority in considering application for public carrier's permit.

1. Power to restrict the number of and attach conditions to public carrier's permit
2. Procedure in applying for and granting permits.
3. Duration and renewal of permits.
4. General conditions attaching to all permits.
5. Cancellation and suspension of permit.
6. Transfer of permit on death of holder.
7. Special permits.
8. Validation of permits for use outside regions in which granted.
9. Appeals.

67. Compensation for death of, or injury to. a passenger.
67-A. Claims Tribunal.
67-B- Applications for compensation.
67-C. Award of Compensation.
67-D. Procedure and powers of Claims Tribunal
67-E. Appeal.
67-F. Recovery of amount of compensation.
67-G. Bar of jurisdiction.

1. Power to make rules as to stage carriages and contract carriages-
2. Power to make rules for the purpose of this Chapter.

## CHAPTER-V.
## N.W.F.P. ROAD TRANSPORT BOARD.

1. Road Transport Board.
2. Transport Authorities to have no jurisdiction in respect of motor transport operated by the Board.

72. Powers of the Road Transport Board to acquire property for motor transport operated by it

Unofficial Copy

# CHAPTER IV

## CONSTRUCTION, EQUIPMENT AND MAINTENANCE OF MOTOR VEHICLES.

1. General provisions regarding construction and maintenance.
2. Power to make rule.

**Sections.**

## CHAPTER—VII
## CONTROL OF TRAFFIC

1. Limits of speed.
2. Limit of weight and limitation on use.
3. Power to have vehicle weighed.
4. Power to restrict the use of vehicles.
5. Power to erect traffic signs.
6. Parking places and halting stations.
7. Main Roads.
8. Duty to obey traffic signs.
9. Signals and signalling devices.
10. Vehicles with left hand control.
11. Leaving vehicle in dangerous position
12. Riding on running boards.
13. Obstruction of driver.
14. Stationary vehicles.
15. Pillion riding.

89-A Rider to wear helmet.

1. Duty to produce licence and certificate of registration
2. Railway crossing.
3. Duty of driver to stop in certain cases.
4. Duty of owner of motor vehicles to give information
5. Duty of driver in case of accident and injury to a person, Animal or damage to property.
6. Inspection of vehicle involved in accident.
7. Power to make rules.

Unofficial Copy

## CHAPTER-V1II
## OFFENCES, PENALTIES AND PROCEDURE

Sections.

1. Offences relating to licences.
2. Driving at excessive speed.
3. Driving recklessly or dangerously.
4. Driving while under the influence of drink or drugs.
5. Driving when mentally or physically unfit to drive
6. Punishment for abetment of certain offences.

103. Racing and trials of speed.

1. Using vehicle in unsafe condition.
2. Sale of vehicle in or alteration of vehicle to a condition contravening this Ordinance.
3. Using vehicle without permit
4. Driving vehicle exceeding permissible weight.
5. Penalty for failing to stop in case of accident or failure to furnish information, etc.
6. Taking vehicle without authority.
7. Unauthorised interference with vehicle.
8. Disobedience of orders, obstruction and refusal of information.

111-A Penalty of conventration of rules relating to appliances.

1. General provision for punishment of offences not otherwise provided for.
2. Power of arrest without warrant.
3. Power of Police officer to seize documents.

115. Power to detain vehicle used without certificate of registration or permit.

**Sections.**

1. Summary disposal of cases.
2. Restriction on conviction.
3. Jurisdiction of Court.

## CHAPTER IX
## MISCELLANEOUS

1. Publication of and commencement of rules.
2. Appointment of motor vehicles officers.

121. General Provisions regarding appeals to prescribed appellate authorities.
122. Repeals and savings.

**SCHEDULE**

1. First Schedule .. Forms.
2. Second Schedule .. Disqualification for driving licence.
3. Third Schedule .. Test of competence to drive.
4. Fourth Schedule .. Authorities entitled to grant licence.
5. Fifth Schedule .. Endorsement on licenses.
6. Sixth Schedule .. Registration marks.
7. [Omitted]
8. Eighth Schedule .. Limits of speed for Motor vehicles.

9. Ninth Schedule .. Traffic signs.

1. Tenth Schedule .. Driving regulations.
2. Eleventh Schedule .. Signals.
3. Twelfth Schedule .. Offences
4. Thirteenth Schedule .. Scale of compensation

Fourteenth Schedule . . Enactments Repealed.

**THE 2[PROVINCIAL] MOTOR VEHICLES ORDINANCE, 1965.**
**1WEST PAKISTAN ORDINANCE No. XIX OF 1965.**
[8th June, 1965]
**AN**
**ORDINANCE**
*to amend and consolidate the law relating to Motor Vehicles in the Province of West Pakistan.*

| | |
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| Preamble | WHEREAS, it is expedient to amend and consolidate the law-relating to motor vehicles in the Province of West Pakistan; |

AND WHEREAS, the Provincial Assembly of West Pakistan is not in session and the Governor of West Pakistan is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred on him by clause (1) of Article 79 of the Constitution, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:

**CHAPTER-I**

# PRELIMINARY

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| Short title and | 1. (1) This Ordinance may be called the 2[Provincial] Motor Vehicle |

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| extent | Ordinance, 1965. |

(2) It extends to the Whole of the 3[Pakistan]

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| Definition | 2. In this Ordinance, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say- |

(1) "ambulance" means a vehicle designed for the carriage of sick, wounded or invalid persons or animals;

1. This Ordinance was approved by the West Pakistan Provincial Assembly under Article 79 (3) of the Constitution at its meeting, held on 10th July, 1965, see Gazette of West Pakistan, 1965, Extraordinary, pp 7321 to 3827.
2. For the words "West Pakistan", the Word "Provincial subs, by P. O. 4 of 1975.
3. In sub-section (2) of section 1, the words "Province of West Pakistan, except the Tribal Areas', the word "Pakistan", subs . .. . ibid.

(2) 'axle weight" means in relation to an axle of a vehicle the total weight transmitted by the several wheels attached to that axle to the surface where on the vehicle rests;
(3) "1[Board'] means the 1[North Vest Frontier Province] Road Transport Board established under section 70;

1. "certificate of registration" means the certificate issued by a competent authority to the effect that a motor vehicle has been duly registered in accordance with the provisions of Chapter-III;
2. "contract carriage" means a motor vehicle which carries a passenger or passengers for hire or reward under a contract expressed or implied for the use of the vehicle as a whole at or for a fixed or agreed rate or sum and from one point to another without stopping to pick up or set down along the line of route passengers not included in the contract; and includes a motor cab notwithstanding that the passengers may pay separate fares;
3. "delivery van" means any goods vehicle the registered laden weight of which does not exceed 5.000 pounds avoirdupois ;
4. "driver" includes, where a separate person acts as steersman of a motor vehicle, that person as well as any other person engaged in the driving of the vehicle;
5. "emergency vehicle" means a motor vehicle used solely for police, fire-brigade or" ambulance purposes or. to relieve distress;
6. "fares" includes sums payable for a season ticket or in respect of the hire of a contract carriage.
7. "goods" include live-stock, and anything (other than equipment ordinarily used with the vehicle) carried by a vehicle except living persons, but does hot include

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luggage or personal effects carried in a motor car or in a trailer attached to a motor car or the personal luggage of passengers travelling in the vehicle;

8. "goods vehicle" means any motor vehicle constructed or adapted for use for the carriage of goods, or any motor vehicle not so constructed or adapted when used for the carriage of goods, solely or in addition to passengers

1. Subs: by N.W.F.P. Ord. No. V of 1972. s. 2.

1. "Government" means the 1[Provincial Government.]
2. "heavy transport vehicle" means a transport vehicle the registered axle weight of which exceeds 10,600 pounds avoirdupois, or the registered laden weight of which exceed 14,500 pounds avoirdupois;
3. "intersection" shall include the area bounded by the side lines, real or projected, of two or more public highways which meet or cross each others;
4. "invalid carriage" means a motor vehicle the unladen weight of which does not exceed five hundred weights, specially designed and constructed, and not merely adapted, for the use of a person suffering from some physical defect or disability, and used solely by or for such a person:
5. "licence" means the document issued by competent authority authorising the person, specified therein to drive a motor vehicle or a motor vehicle of any specified class or description;
6. "licensing authority" means an authority empowered to grant licences under this ordinance;
7. "light transport vehicle." means any public service vehicle other than a motor cab, or any goods vehicle other then a heavy transport vehicle or a delivery van;
8. '"locomotive" means a motor vehicle which is itself not constructed to carry any load (other than equipment used for the purpose of propulsion,), the unladen weight of which exceeds, 16,000 pounds avoirdupois, but does not include a road-roller;
9. "motor cab" means any motor vehicle constructed, adapted or used to carry not more than ten passengers excluding the driver, for hire or reward;
10. "motor car" means any motor vehicle other than a transport vehicle, locomotive, road roller, tractor, motor cycle or invalid carriage;
11. "motor cycle" means a motor vehicle, other than an invalid carriage, with less than four wheels, the unladen weight of which, inclusive of any side-car attached to the vehicle does not exceed 900 pounds avoirdupois

1. Subs: by P. O. 4 of 1975.

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1. "motor vehicle' means any mechanically propelled vehicle adapted for use upon roads whether the powers of propulsion in transmitted thereto from an external or internal source, and includes a chassis to which a body has not been attached, 1[a tractor] and a trailer, but does not include a vehicle running, upon fixed rails or used solely upon the premises of the owner;
2. "Owner" means the person in whose name the motor vehicle is registered and includes—
3. a transferee of the motor vehicle from such persons:
4. in relation to motor vehicle which is the subject of a hire-purchase agreement, the person in possession of the vehicle under that agreement :and
5. where the person in whose name the motor vehicle is registered or the person in possession of the motor vehicle under a hire-purchase agreement is—

(i) a minor, the guardian of such minor:
(ii) a company registered under the companies Act, 1913, the directors of such company;
(iii) a society registered under the Societies Registration Act, 1860, or under any law relating to co-operative societies, the principal officer of such society by whatever designation known:
(iv) a firm, all the partners of such a firm ;and
(v) any other association of persons, all the members of such association:

Provided that where such company, firm, society or other association of persons has given notice to the registering authority that has nominated a director, partner, office-bearer, member or officer, as the case may be, of the company, firm, society or association to be the owner of the vehicle for the purposes of this Ordinance, the person so nominated shall alone be deemed to be the owner for the purpose of this Ordinance;
(25) "permit" means the document issued by the Provincial Transport Authority or a Regional Transport Authority, authorising the use of a transport vehicle as a contract carriage or stage carriage, or authorising the owner as a private carrier or public carrier to use such vehicle;

1. Ins by Ord. No. VIII of 1978.

(26) " prescribed" means prescribed by rules made under this Ordinance;
(27) "private carrier" means an owner of a transport vehicle other than a public carrier who uses that vehicle solely for the carriage of goods which are his property or the carriage of which is necessary for the purposes of his business, not being a business of providing transport, or who uses the vehicle for any of the purposes specified in sub-section (2) of section 44"
1[27-A. "Province" means the North-West Frontier Province]"
(28) "public carrier" means an owner of a transport vehicle who transports or undertakes to transport goods, or any class of goods, for another person at any time and in any public place, for hire or reward, whether in pursuance of the terms of a contract or agreement or

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otherwise, and includes any person, body, association or company engaged in the business of carrying the goods of persons associated with that person, body, association or company for the purposes of having their goods transported;

1. "public highway" shall include any highway, road, street, avenue, alley, public place, public driveway or any other public way;
2. "public place" means, a road, street way or other place, whether a thoroughfare or not to which the public have a right of access, and includes any place or stand at which passengers are pickedup or set down by a stage carriage;
3. "public service vehicle" means any motor vehicle used or adapted, to be used for the carriage of passengers for hire or reward, and includes a motor cab, contract carriage and stage carriage;
4. "registered axle weight" means in respect of any vehicle the axle weight certified and registered by the registered authority as permissible for that vehicle;
5. "registered laden weight" means in respect of any vehicle the total weight of the vehicle and load certified and registered by the registering authority as permissible for that vehicle;

1. Sub-section (27a) inserted by North-West Frontier Province, Ord. No. I of 1972 S.2.

1. "registering authority" means an authority empowered to register motor vehicles under Chapter III.
2. "school bus" means any motor vehicle used exclusively for the carriage of students of any educational institution recognised by Government or the managing committee of which is a society registered under the Societies Registration Act, 1860;
3. "semi-trailer" means any vehicle which is so designed that when operated, the forward end of its body or chassis rests upon the body or chassis of the towing motor vehicle
4. "stage carriage" means a motor vehicle carrying or adapted to carry more than six persons excluding the driver which carries passengers for hire or reward at separate fares paid by or for individual passengers, either for the whole journey or for stages of the journey;
5. "street (roadway)" means that part of the public highway which is intended for vehicular traffic;
6. "tractor" means a motor vehicle which is not itself constructed to carry any load (other than equipment used for the purpose of propulsion) the unladen weight of which does not exceed 16, 000 pounds avoirdupois; but does not include a road-roller;
7. "traffic signs" includes all signals, warning sign posts, direction posts, or other devices for the information, guidance or direction of drivers of motor vehicles;
8. "trailer" means any vehicle other than a side-car drawn or intended to be drawn by a motor vehicle;

9. "transport vehicle" means a public service vehicle, a goods vehicle, a locomotive or a tractor 1[. . . ]

(43) "unladen weight" means the weight of a vehicle or trailer including all equipment ordinarily used within the vehicle or trailer when working, but excluding the weight of the driver or attendant; and where alternative parts or bodies are used, the unladen weight of the vehicle means the weight of the vehicle with the heaviest such alternative part or body;

1. In clause (42), after the words "a tractor" the words "other thau a locomotive or tractor used soley for agricultural purposes, omitted by Ord. No. VIII of 1978.

(44) "weight" means the total weight transmitted for the time being by the wheels of a vehicle to the surface on which the vehicle rests.

## CHAPTER-II
## LICENSING OF DRIVERS OF MOTOR VEHICLES

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| Prohibition on driving without license. | 3. 1[l] No person shall drive a motor vehicle in any public place unless he holds an effective licence authorising him to drive the vehicle; and no person shall so drive a motor vehicle as paid employee or shall so drive a public service vehicle unless his licence specifically entitles him so to do: |

Provided that a person receiving instructions in driving a motor vehicle may, subject to such conditions as may be prescribed by Government in this behalf, drive a motor vehicle in any public place.

2[(2) No person shall drive a Motor Vehicle in any public place unless he has in his possession his own copy of the most recent version of the Pakistan Highway Code published by the Federal Government.]

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| Age limit in connection with driving of motor vehicles. | 4. (1) No person shall drive in any public place—<br>(i) a motor cycle or an invalid carriage, unless he has attained the age of eighteen years;<br>(ii) a motor car, otherwise than as a paid employee, unless he has attained the age of eighteen years;<br>(iii) a motor car as a paid employee or a transport vehicle, unless he has attained the age of twenty-one years;<br>(iv) a heavy transport vehicle, unless he has attained the age of twenty-two years. |
| | 2. (a) No person about the age of fifty years shall drive a transport vehicle in any public place unless the licence entitling him so to do bears |

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| | an effective endorsement by the licensing authority that such person has furnished a certificate in Form B as set forth in the First Schedule signed by a registered medical practitioner. |

1. Section-3, re-numbered as sub-section (1) by Ord. VIII of 1978.
2. After sub-section (1) a new sub-section (2) inserted by Ord. No. VIII of 1978.

(b) The licensing authority shall not make on any licence any such endorsement as is referred to in clause (a) unless it appears from the medical certificate furnished by the holder of the licence that he is not suffering from any disease or disability specified in the Second Schedule or any other disease or disability which is likely to cause the driving by him of transport vehicle to be a source of-danger to the public or to the passengers.

(c) An endorsement made under the provisions of clause (a) shall be effective for a period of twelve months from the date thereof, but the said period may from time to time, be, extended by the licensing authority by a further period of twelve months at any one time on the production by the holder of the licence of a fresh medical certificate as required under clause (a) and on being satisfied there from that the holder of the licence is not suffering from any disease or disability referred to in clause (b).

(3) No person shall drive a motor vehicle in a public place with his eyes wholly or partly covered with any cloth or other opaque substance, or in such manner as to interfere in any manner with his vision.

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| 5. No owner or person incharge of a motor vehicle shall cause or permit any person who does not satisfy the provisions of section 3 or section 4 to drive the vehicle. | Owners of motor vehicles not to permit contravention of section 3 or section 4 |
| 6. No holder of a licence shall permit to be used by any other person. | Restriction on use of license by person other than holder |
| 7. (1) Any person who is not disqualified under section 4 for driving a motor vehicle and who is not for the time being disqualified for holding or obtaining a licence, may apply to the licensing authority having jurisdiction in the area in which he ordinarily resides or carries on business or, if the application is for a licence to drive as a paid employee, in which the employer resides or carries on business for the issue to him of a licence. | Grant of license. |

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1. Every application under sub section (1) shall be in Form A as set forth in the First Schedule, shall be signed by, or bear the thumb impression of the applicant in two places, and shall contain the information required by the form.
2. When the application is for a licence to drive as a paid employee or to drive a transport vehicle, or where in any other case the licensing authority for reasons to be stated in writing so requires, the application shall be accompanied by a medical certificate

in Form B as set forth in the First Schedule signed by a registered medical practitioner.

1. Every application for a licence to drive 1[a motor vehicle] shall be accompanied by three copies of a recent photograph of the applicant attested by a Magistrate or 2[an officer of Government not inferior in rank to an officer in Grade-17 of the National Pay scale.]
2. If, from the application or from the medical-certificate referred to in sub-section (3) it appears that the applicant is suffering from any disease or disability specified in the Second Schedule or any other disease or disability which is likely to cause the driving by him of a motor vehicle of the class which he would be authorised by the licence applied for to drive to be a source of danger to the public or to the passengers, the licensing authority shall refuse to issue the licence:

Provided that—
(a) a licence limited to driving an invalid carriage may be issued to the applicant, if the licensing authority is satisfied that he is fit to drive such a carriage;
(b) the applicant may, except where he suffers from a disease or disability specified in the Second Schedule, claim to be subjected to a test of his fitness or ability to drive a motor vehicle of a particular construction or design, and if he passes such test to the satisfaction of the licensing authority and is not other wise disqualified, the licensing authority shall grant him a licence to drive such motor vehicle as the licensing authority may specify in the licence.

(6) No licence shall be issued to any applicant unless he passes to the satisfaction of the licensing authority the test of co mpetence specified in the Third Schedule:

Provided that where the applicant is for a licence to drive a motor vehicle (not being a transport vehicle) otherwise than as a paid employee, the licensing authority may exempt the applicant from the test specified in the Third Schedule, if—
(a) the applicant possesses a driving certificate issued by an automobile association recognized in this behalf by Government, or.

1. In sub-section (4), for the words "as a paid employee and every application for a licence to drive a transport vehicle" the words "a Motor Vehicle" subs, by Ord. No. VIII of 1978.
2. for the words and figure "a Class 1 Officer of Government" the words and figure an

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officer of Government not inferior in rank to an officer in Grade 17 of the National Pay Scales" subs,
by . . . . . ibid.

(b) the licensing authority is satisfied that the applicant has previously held a licence (or similar document) valid outside the Province and has had not less than twelve months recent experience of driving a motor vehicle of the class to which the application refers:

Provided further that where the applicant, being a serving member of the armed forces of Pakistan, is in possession of a valid army driving licence and has been actually driving one or more classes of motor vehicles for not less than three years immediately before the date of application, the licensing authority shall subject to the prescribed conditions, exempt him from the test specified in the Third Schedule and issue to him a driving licence for the class or classes of motor vehicles he has been so driving.

(7) The test of competence to drive shall be carried out in a vehicle of the class to which the application refers, and for the purposes of part I of the test—

1. a person who passes the test in driving a heavy transport vehicle shall be deemed also to have passed the test in driving any motor vehicle other than a motor cycle or a road roller;
2. a person who passes the test in driving a light transport vehicle shall be deemed also to have passed the test in driving a motor car or a motor cab or a delivery van.
3. No licence shall be issued to any applicant to drive a heavy transport vehicle unless he has held for a period of not less than three years immediately preceding the making of the application an effective licence to drive a motor vehicle other than a motor cycle, an invalid carriage or a road-roller.
4. When an application has been duly made to the appropriate licensing authority and the applicant has satisfied such authority of his physical fitness and of his competence to drive and has paid to the authority the prescribed fee, the licensing authority shall grant the applicant a licence unless the applicant is disqualified under Section 4 for driving a motor vehicle or is for the time being disqualified for holding or obtaining a licence:

Provided that a licensing authority may issue a licence to drive a motor cycle or a motor car notwithstanding that it is not the appropriate licensing authority; if the licensing authority is satisfied that there is good reason for the applicant's inability to apply to appropriate licencing authority.

1[10 No licence shall be issued to any applicant unless he has in his possession his own copy of the most recent version of the Pakistan Highway Code published by the Federal Government.]

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| Form and contents of licence. | 8. (1) Every licence, except a licence issued under section 15, shall be in Form C as set forth in the First Schedule and shall have affixed thereto one of the signatures or thumb-impression given on the application for the licence and 2[. . . . . .] one of the photographs referred to in sub section (4) of section 7. |

(2) A licence shall specify whether the holder is entitled to drive as a paid employee and whether he is entitled to drive a public service vehicle and shall further be expressed as entitling the holder to drive a motor vehicle of one or more of the following classes, namely :-

1. motor cycle ;
2. motor car;
3. motor cab;
4. delivery van;

(e) light transport vehicle;
(f) heavy transport vehicle,
(g) locomotive ;
(h) tractor;
(i) road-roller;
(j) invalid carriage;
(k) any other motor vehicle of a specified description.

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| Additions licences. | 9. (1) Any person holding a licence issued under this Ordinance who is not for the time being disqualified for holding or obtaining a licence may apply in Form D as set forth in the First Schedule to the licensing authority having jurisdiction in the area in which he ordinarily resides or carries on business or, if the application relates to a licence to drive as a paid employee, in which the employer resides or carries on business, for the addition of any class of motor vehicles to the license as is specified in section 8. |

1. after sub-section (9), sub-section (10) inserted by Ord. No. VIII of 1978.
2. in sub-section (1) of section 8, the words "in the case of a licence to drive as a paid employee of licence to drive as a paid employee or to drive a transport vehicle" omitted ibid.

(2) The provisions of section 7 shall apply to an application under this section as if the application were for the grant of a licence under that section to drive the class of motor vehicle which the applicant desires to be added to his licence:

Provided that the provisions of sub-sections (3) and (4) of that section shall not apply where the applicant is the holder of a licence to drive as a paid employee or to drive

a transport vehicle.

(3) No fee other than a fee for the test of competence to drive shall be charged for an addition to a licence under this section.

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| 10. (1) Subject to any rules made by Government, a licence issued under the foregoing section shall be effective through out the Province. | Extent of validity of license. |

(2) Subject to any rules made by Government, a licence to drive a motor vehicle issued by a competent authority in any part of Pakistan not included in the Province shall be valid throughout the Province as if it were a licence issued under this Ordinance and it shall be lawful for the holder of such a licence to drive and be employed in driving in the Province a motor vehicle of any class or description which he is authorised by such licence to driver

Provided that the holder of such a licence is not disqualified under any of the provisions of this Ordinance for holding or obtaining a licence in the Province.

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| 11. A licence issued under the foregoing sections shall subject to the provisions contained in this Ordinance, as holders of licence for holding or obtaining licences, be effective without renewal for a period upto three years in the case of a licence to drive a motor car or motor cycle otherwise than as a paid employee, and in any other case for a period of twelve months only from the date of issue of last renewal. | Currency of licenses. |
| 12. (1) Any licensing authority may on an application made to it renew a licence issued under the provisions of this Ordinance | Renewal of licenses. |

2[Provided that no licence shall be renewed unless the holder thereof has in his possession his own copy of the most recent version of the Pakistan Highway Code published by the Federal Government].

(2) A licence to drive as a paid employee shall not be renewed so as to be effective for any period after the expiry of five years from

1. In section 12, in sub-section (1) at the end the "fullstop." the "colon" subs by Ord No VIII of 1978, s.6.
2. after sub-section (1) the proviso inserted by ibid.

the date of the medical certificate furnished by the licence holder under section 7 unless he furnishes a fresh medical certificate in Form B as set forth in the First Schedule and singed by a registered medical practitioner in which case the period of five years shall be computed from the date of the last of such certificates.

(3) An application for the renewal of licence shall be in Form E as set forth in the First Schedule and shall contain the declaration required by the form; provided that if the

applicant does not or is unable to subscribe to the said declaration, the provisions of sub-section (5) of section 7 shall apply.

(4) The fee payable for the renewal of a licence shall be as prescribed, and enhanced fee may be prescribed where the application for renewal is made more than thirty days from the date of expiry of the licence:

Provided that if the application for renewal is made more than three years after the expiry of the licence, the licensing authority may refuse to renew the licence unless the applicant undergoes and passes to its satisfaction the test of competence specified in the Third Schedule.

(5) When the authority renewing the licence is not the authority which issued the licence, it shall intimate the fact of renewal to the authority which issued the licence.

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| Cancellation of license on grounds of disease or disability. | 13. (1) Notwithstanding any thing contained in section 11, or section 12, any licensing authority may at any time cancel a licence or may require the holder thereof, as a condition of continuing to hold such licence, to furnish a fresh medical certificate in Form B as set forth in the First Schedule and signed by a registered medical practitioner, if the licensing authority has reasonable grounds to believe that the holder of the licence is, by virtue of any disease or disability, unfit to drive a motor vehicle. |

(2) When the authority canceling the licence is not the authority which issued the licence it shall intimate the fact of cancellation to the authority which issued the licence.

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| Order refusing licenses and appeal there from. | 14. (1) Where the licensing authority refuses to issue or cancels or refuses to renew any licence, it shall do so by an order communicated to the applicant or the holder, as the case may be, giving reasons in writing for such refusal or cancellation. |

(2) Upon the issue of any such order the person affected if he is the holder of a licence, shall forthwith surrender his licence to

the licensing authority making the order

if the licence has not already been surrendered, and the licensing authority shall, if no appeal is preferred against its order as provided in sub-section (3), or where any such appeal has been preferred and been dismissed, destroy the licence or cause it to be destroyed.

(3) Any person aggrieved by an order referred to in sub-section (1) may, within thirty days of the service on him of the order, appeal to the prescribed authority, who shall decide the appeal after giving the authority against whose order the appeal has been preferred an opportunity of being heard, and that authority shall be bound by the decision of the appellate authority.

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| 15. (1) The authority specified in Part A of the Fourth Schedule may grant licences, valid throughout the Province, to persons, who has completed their eighteenth year to drive motor vehicles which are the property or for the time being under the exclusive control of the 1[Federal] Government. | License to drive motor vehicles the property of the 1[Federal] Government. |

1. A licence issued under this section shall specify the class or classes of vehicles which the holder is entitled to drive: and the period for which he is so entitled.
2. A licence issued under this section shall not entitle the holder to drive any motor vehicle except a motor vehicle which is the property or for the time being under the exclusive control of the 1[Federal Government]
3. The authority issuing any licence under this section shall at the request of Government furnish such information respecting any person to whom a licence is issued as Government may at any time require.

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| 16. (1) If a licensing authority is satisfied after giving him an opportunity of being heard that any person—<br>(a) is a habitual criminal or a habitual drunkard, or<br>(b) is using or has used a motor vehicle in the commission of a cognizable offence, or | Power of licensing authority to disqualify for holding al license. |

(c) has by his previous conduct as driver of a motor vehicle shown that his driving is likely to be attended with danger to the public,
it may, for reasons to be recorded in writing, make an order disqualifying that person for a specified period for holding or obtaining a licence.

1. Subs, by P. O. 4 of 1975.

1[(1-A) If a licensing authority is satisfied, after giving him an opportunity of being heard, that in respect of any person an order under sub-section (2) of this section, or a declaration under sub-section(1) of section 18, has been made on more than one occasion, it may, for reasons to be recorded in writing, make an order cancelling the licence granted to that person and disqualifying him for holding or obtaining a licence for such period as it may deem fit].

1. Upon the issue of any such order the person affected, if he is the holder of a licence, shall forthwith surrender his licence to the licensing authority making the order, if the licence has not already been surrendered, and the licensing authority shall keep it unit! the disqualification has expired or has been removed.
2. Any person aggrieved by an order made by a licensing authority under this section may, within thirty days of the service on him of the order, appeal to the

prescribed authority, and such appellate authority shall give notice to the licensing authority and hear either party if so required by that party and may make such inquiry into the matter as it thinks fit. An order made by any such appellate authority shall be final.

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| Power of Regional Transport Authority to disqualify. | 17. (1) A Regional Transport Authority constituted under Chapter IV may, for reasons to be recorded in writing and subject to any prescribed conditions, declare any person disqualified for a specified period , for holding or obtaining a licence to drive a transport vehicle in the province. |

1. A Regional Transport Authority making a declaration under sub-section(1) shall, if the person so disqualified is the holder of licence, furnish a copy of the declaration to the licensing authority by whom the licence was granted, and if the person so disqualified is not the holder of a licence, to the licensing authority within whose jurisdiction he ordinarily resides.
2. upon the making of a declaration under sub-section (1), the person affected, if he is the holder of a licence shall forthwith surrender his licence to the licensing authority by whom the licence was granted, and the licensing authority shall keep it until the disqualification has expired or has been removed.

(4) Any person aggrieved by an order made under sub-section (1) may, within thirty days of the receipt of intimation of such order, appeal against the order to the prescribed authority.

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| Power of Court to order disqualification | 18. (1) Where a person is convicted of an offence under this Ordinance, or of an offence in the commission of which a motor vehicle was used, the Court by which such person is convicted may subject to the provisions of this section, in addition to imposing |

1. Ins. by Ord. No. VIII of 1978.

any other punishment authorised by law, declare the person so convicted to be disqualified for such period as the Court may specify for holding any licence or for holding a licence to drive a particular class or description of vehicles:

Provided that the Court shall not order the disqualification of an offender convicted for the first or second time of an offence punishable under section 98.

1. The Court shall order the disqualification of an offender convicted of an offence punishable under section 99 or section 100 and such disqualification shall be for a period of not less than six months.

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2. The Court shall order the disqualification of an offender convicted of an offence against the provisions of clause (c) of sub-section(1) of section 92 or of section 94 and such disqualification shall for a period of not less than one months.
3. The Court shall, unless for special reasons to be recorded in writing, if thinks fit to order otherwise, order the disqualification of an offender—
4. who having been convicted of an offence punishable under section 101 is again convicted of an offered punishable under that section,
5. who is convicted of an offence punishable under section 103,
6. who is convicted of an offence punishable under section 106:

Provided that the period of disqualification shall not exceed, in the cases referred to in clauses (a) and (b), two years, and, in the case referred to in clause (c), one year.

(5) A Court ordering the disqualification of an offender convict' d of an offence punishable under section 101 may also direct that the offender shall, whether he has previously passed the test of competency to drive, specified in the Third Schedule or not, remain disqualified until he has subsequent to the making of the order of disqualification passed that test to the satisfaction of the licensing authority.

(6) The court to which an appeal lies from any conviction of an offence of the nature- specified in sub-section (I) may set a side or vary any order of disqualification made by the Court below, and the Court to which appeals ordinarily lie from any court may set

aside or vary any order of disqualification made by that Court, notwithstanding that no appeal lies against the conviction in connection with which such order was made.

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| Effect of disqualification order. | 19. (1) A person in respect of whom any disqualification order is made under this Chapter shall be debarred to the extent and for the period specified in such order from holding or obtaining a licence and the licence, if any, held by such persons at the date of the order shall cease to be effective during such period. |

(2) The operation of a disqualification order made under section 18 shall not be suspended or postponed while an appeal is pending against such order or against the conviction as a result of which such order is made, unless the appellate Court so directs.

(3) Any person in respect of whom any disqualification order has been made may, at any time after the expiry of six months from the date of the order, apply to the Court or other authority by which the order was made, to remove the disqualification; and the Court or authority , as the case may be, may having regard to all the circumstances of the case, remove or vary the order of disqualification:

Provided that where an application has been made under this section a second application thereunder shall not be entertain before the expiry of a further period of three months.

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| Endorsement | 20. (1) The Court or authority making an order of disqualification shall endorse or cause to be endorsed upon the licence, if any, held by the person disqualified, particulars of the order of disqualification and of any conviction for an offence in respect of which an order of disqualification is made: and particulars of any removal or variation of an order of disqualification made under sub-section (3) of section 19 shall be similarly so endorsed |

1. Any person accused of an offence specified in the Fifth Schedule or any other offence involving the driving of a motor vehicle shall, when attending the Court trying him for such offence bring with him his licence if it is in his possession.
2. The Court by which any person is convicted of an offence specified in the Fifth Schedule or any other offence involving the driving of a motor vehicle shall, whether or not an order of disqualification is made in respect of such conviction, endorse or cause to be endorsed particulars of such conviction any licence held by the persons convicted.

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| 21. (1) An endorsement on any licence shall be transferred to any new or duplicate licence obtained by the holder thereof until the holder becomes entitled under the provisions of this section to have a licence issued to him free from endorsement. | Transfer of endorsement and issue of license free from endorsement. |

(2) Where a licence is required to be endorsed and the licence is at the time not in the possession of the Court or authority by which the endorsement is to be made, then—

1. if the person in respect of whom the endorsement is to be made is at the time the holder of a licence, he shall produce the licence before the Court or authority within such time as the Court or authority may fix, or
2. if, not being then the holder of a licence, he subsequently obtains a licence, he shall within five days after obtaining the licence, produce it before the Court or authority for the purpose of endorsement;

and if the licence is not produced within the time specified, the person in respect of whom the endorsement is to be made, shall be deemed to have committed an offence punishable under section 97 and the licence shall on the expiry of such time be of no effect until it has been produced for the purpose of endorsement.

(3)A person whose licence has been endorsed shall if during the period of five years since the last endorsement was made no further order of endorsement has been made against him be entitled, on surrendering his licence and on payment of the prescribed fee, to receive a copy of the licence free from all endorsement; and if the endorsement was only in respect of exceeding a speed limit, he shall be entitled to have a copy of the licence free from endorsement issued on the expiration of one year from the date of the order directing the endorsement to be made:

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Provided that in computing the said period of five years and one year respectively, the time during which the said person was disqualified for holding or obtaining a licence shall be excluded.

(4) When a licence is endorsed by or an order of endorsement is made by any Court, it shall send particulars of the endorsement or order, as the case may be, to the licensing authority by which the licence was last renewed and to the licensing authority which granted the licence.

(5) Where the holder of a licence is disqualified by the order of any Court for holding or obtaining a licence, the Court shall take possession of the licence and forward it to the licensing authority by which it was granted or last renewed and that authority shall keep the licence until the disqualification has expired or has been removed and the person entitled to the licence has made a demand in writing for its return to him:

Provided that, if the disqualification is limited to the driving of a motor vehicle of a particular class or description, the Court shall endorse the licence to this effect and shall send a copy of the order of disqualification to the licensing authority by which the licence was granted and shall return the licence to the holder.

(6) Where on an appeal against any conviction or order of a Court which has been endorsed on a licence, the appellate Court varies or sets aside the conviction or order, the appellate Court shall so inform the licensing authority by which the licence was last renewed and the licensing authority which granted the licence, and shall amend or cause to be amended the endorsement of such conviction or order.

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| Power to make rules. | 22. (1) Government may make rules for the purpose of carrying into effect the provisions of this Chapter. |

(2) Without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :-

1. the appointment, jurisdiction, control and functions of licensing authorities and other prescribed authorities;
2. the conduct and hearing of appeals that may be preferred under this Chapter, the fees to be paid in respect of such appeals and the refund of such fees; provided that no fee so fixed shall exceed two rupees;
3. the issue of duplicate licences to replace licences lost, destroyed or mutilated, the replacement of photographs which have become obsolete and the issue of temporary licences to persons receiving instruction in driving and the fees to be charged there for;
4. the conditions subject to which a Regional Transport Authority may disqualify a person for holding a licence to drive a transport vehicle;

(e) the medical examination and testing of applicant; for licences and of drivers and the fees to be charged therefor ;
(f) the fees to be paid for the grant and renewal of licences;
(g) the exemption of prescribed persons, or prescribed classes of persons from payment of all or any portion of the fee payable under this Chapter;
(h) the granting by registered medical practitioners of the certificates referred to in sub-section (2) of section 4, sub section (3) of section 7 and sub-section 1 of section 13;
(i) the communication of particulars of licences granted by one licensing authority to other licensing authorities;
(j) the control of schools or establishments for the instruction of drivers of motor vehicles and the acceptance of driving certificates issued by such schools or establishments as qualifying the holder for exemption from Part I of the test specified in the Third Schedule;
(k) the exemption of drivers of road-rollers from all or any of the provisions of this Chapter or of the rules made thereunder.

## CHAPTER—III
## REGISTRATION OF MOTOR VEHICLES.

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| 23. (1) No person shall drive any motor vehicle and no owner of a motor vehicle shall cause or permit the vehicle to be driven in 1[any place] unless the vehicle is registered in accordance with this Chapter and the vehicle carries a registration mark displayed in the prescribed manner. | Motor vehicle not to be driven with out registration. |

*Explanation.*— A. motor vehicle shall not be deemed to be registered in accordance with this Chapter if the certificate of registration has been suspended or cancelled.

(2) Nothing in this section shall apply to a motor vehicle while being driven within the limits of jurisdiction of a registering authority to or from the appropriate place of registration for the purpose of being registered under section 24, 26, 40 or 41 or to a motor vehicle exempted from the provisions of this Chapter while in the possession of a dealer in motor vehicles.

1. In section 23, in sub-section (1), the words "public place or in any other place for the purpose of carrying passengers or goods, the word "any place", subs, by Ord VIII of 1978, S.8

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| Registration where to be made. | 24. (1) Subject to the provisions of section 26, section 40 and section 41, every owner of a motor vehicle shall cause the vehicle to be registered by the registering authority of the division in which he has his residence or place of business or in which the vehicle is normally kept. |

(2) Government may by rule made under section 43 required that any certificate of registration issued under the provisions of the Motor Vehicles Act, 1939, shall be presented within a prescribed period, to a specified registering authority for entry therein of such further particulars of the vehicles as that authority may, for the purposes of this Ordinance, deem fit to record.

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| Registration how to be made. | 25. (1) An application by or on behalf of the owner of a motor vehicle for registration shall be in Form F as set forth in the First Schedule, shall contain the information required by that form, and shall be accompanied by the prescribed fee. |

(2) The registering authority shall issue to the owner of a motor vehicle registered by it a certificate of registration in Form G as set forth in the First Schedule and shall enter in a record to be kept by it particulars of such certificate.

1[(3) The registration authority shall assign to the vehicle a distinguishing mark (in this ordinance referred to as the registration mark) consisting of a group of six numerals followed, in English and Urdu scripts, by the name of the District in which the vehicle is being registered or in the case of a vehicle being registered in Islamabad Capital Territory, by the words "Islamabad".

Provided that any motor vehicle, whether the property of Government or not, declared by the Federal Government to be meant for the use of the president or the Prime Minister, or by a Provincial Government to be meant for the use of the Governor or the Chief Minister of the Province, shall not be assigned a registration mark and shall instead display such other mark as may be specified by the Federal Government or the Provincial Government, as the case may be.

(4) The prescribed authority shall make available to the owner of the vehicle, on payment of the prescribed fee, a set of two plates made of such material, colour and dimensions as may be prescribed.]

(5) Government may, by notification in the official Gazzette direct that motor vehicles registered before the commencement of the Provincial Motor Vehicles (Amendment) Ordinance, 1981, shall be assigned new registration marks within such period and according to such procedure as may be specified in the notification".

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| Temporary registration | 26. (1) Notwithstanding anything contained in section 24, the owner of a motor vehicle may apply in the prescribed manner to any |

1. sub-section (3) and (4) of section 25 subs, by Ord. No. XXXVI of 1981, S.2.

registering authority to have the vehicle temporarily registered and thereupon such registering authority shall issue to the owner of the vehicle a temporary certificate of registration and assign to the vehicle a temporary mark of registration.

(2) A registration made under this section shall be valid only for a period of one month, and shall not be renewable.

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| 27. The registering authority may, before proceeding to register a motor vehicle, require the person applying for registration of the vehicle to produce the vehicle either before itself or such authority as Government may, by order appoint for this purpose in order that the registering authority may satisfy itself that the particulars contained in the application are true and that the vehicle complies with the requirements of chapter VI and the rules thereunder. | vehicle at the time of registration |
| 28. (1) The registering authority may, for reasons to be recorded in writing, refuse to register any motor vehicle, if— | Refusal of registration |

1. the vehicle is mechanically so defective as to render its use unsafe; or
2. the vehicle does not comply with the requirements of Chapter VI, or of the rules made thereunder ; or
3. the applicant fails to furnish particular of any previous registration of the vehicle; or
4. the applicant fails to produce before the registering authority—

(i) where the vehicle has been previously registered under this ordinance or under any other law relating to the registration of motor vehicles in force in any place in Pakistan, a letter of authority or a certificate of transfer from the person shown as owner in the last registration certificate in respect of such vehicle; or.

(ii) where the vehicle has been imported from any place outside Pakistan and has not been previously registered in any place, in Pakistan, an import licence for the vehicle.

(2) Where a registering authority refuses to register a motor vehicle, it shall furnish to the applicant free of cost a copy of the reasons for such refusal.

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| 29. (1) Subject to the provisions of section 30, a motor vehicle registered by a competent authority in any part of Pakistan not included in the Province under the law relating to motor vehicles in erco in such part, shall not be required to be registered under this Ordinance. | Effectiveness in West Pakistan of registration |

Provided that there is in force in respect of the vehicle a certificate conforming to and containing substantially the same particulars as the certificate of registration in Form G as set forth in the First Schedule issued by such competent authority in respect of such vehicle.

1. A certificate complying with the requirements of the proviso to the last preceding sub-section shall be effective throughout the Province as if it were a certificate of registration issued under this Ordinance and the provisions of this Ordinance shall apply thereto.
2. Sub Section(l) shall not apply to any motor vehicle previously registered in the Province if the certificate of registration of the vehicle is, for the time being,

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suspended or cancelled to any reason other than that of permanent removal of the vehicle from the Province

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| Assignment of fresh registration mark on removal to another Province. | 30. (1) When a motor vehicle not required to be registered in the Province by virtue of sub-section (1) of section 29 is kept in the Province for a period exceeding twelve months, the owner of the vehicle shall apply to the registering authority, within whose jurisdiction the vehicle then is, for the assignment of a new registration mark and shall present the certificate of registration of the vehicle to that registering authority. |

(2) The registering authority, to which application is made under sub-section (1), shall assign the vehicle a registration mark 1[reffered to in section 25] to be carried thence forth on the vehicle and shall enter the mark upon the certificate of registration of the vehicle before returning it to the applicant and shall also, in communication with the registering authority by whom the vehicle was previously registered, arrange for the transfer of the registration of the vehicle from the records of that registering authority to its own records.

(3) Government may make rules under section 43 requiring the owner of a motor vehicle not registered within the Province, which is brought into or is for the time being in the Province, to furnish to the prescribed authority such information with respect to the motor vehicle and its registration as may be prescribed.

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| Change of residence or place of business. | 31. (1) if the owner of a motor vehicle-ceases to have his place of business at the address recorded in the certificate of registration of the vehicle, he shall, within thirty days of such change of address, intimate his new address to the registering authority by which the certificate of registration was issued, or, if the new address is within the jurisdiction of another registering authority, to that other registering authority and shall at the same time forward the certificate of registration to the registering authority in order that the new address may be entered therein. |

1. In section -30, in sub-section (2),the words "specified in the Sixth Schedule", the words "referred to in section 25" substituted' by Ord. No. XXXVI of 1981, s.3.

(2) A registering authority other than the original registering authority making any such entry shall communicate the altered address to the original registering authority.

(3) Nothing in sub-section (1) shall apply where the change o the address recorded in the certificate of registration is due to a temporary absence not intended to exceed six months in duration or where the motor vehicle is neither used nor removed from the address recorded in the certificate of registration.

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| 32. (1) Within thirty days of the transfer of ownership of any motor vehicle registered under this Chapter, the transferee shall report the transfer to the registering authority within whose jurisdiction he ordinarily | Transfer of ownership |

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| resides and shall forward the certificate of registration of the vehicle to that registering authority together with the prescribed fee in order that particulars of the transfer of ownership may be entered therein. | |

(2) A registering authority other than the original registering authority making any such entry shall communicate the transfer of ownership to the original registering authority.

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| 1[32-A. If the owner of a motor vehicle registered by a registering authority having jurisdiction in the Tribal Areas of the Province of Balochistan ceases to reside or to have his place of business in those Areas, or sells or otherwise transfers the motor vehicle to any person who does not reside or have his place of business in those Areas, the certificate of registration and registration mark of the vehicle shall stand canceled as from the day on which he ceases to reside or to have his place of business in those areas or, as the case may be, sells or otherwise transfers the vehicle to such person. | Cancellation of certificate of registration of vehicles registered in the Tribal Areas of Balochistan in certain cases. |
| 33. (1) If a motor vehicle is so altered that the particulars contained in the certificate of registration are no longer accurate, the owner of the vehicle shall within fourteen days of the making of any such alteration report the alteration, to the registering authority within whose jurisdiction he resides and shall forward the certificate of registration of the vehicle to that authority together with the prescribed fee in order that particulars of the alteration may be entered there in: | Alteration in motor vehicle. |

Provided that it shall not be necessary to report any change in the unladen Weight of the motor vehicle consequent on the addition or removal of fittings or accessories, if such change does not exceed two per cert of the weight entered in the certificate of registration

(2) A registering authority other than the; original registering authority making any such entry shall communicate the details of the entry to the original registering authority.

1. Added by Ord. No. VIII of 1978.

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| Suspension of registration | 34. (1) A registering authority or any other prescribed authority may, after giving the owner an opportunity of making any representation he may wish to make, for reasons to be recorded in writing, suspend the registration certificate of a motor vehicle ,if— |

1. the vehicle is not insured as required by law; or
2. any fees or taxes payable in respect of the vehicle under this Ordinance or the rules framed there under, or the West Pakistan Motor Vehicles Taxation Act, 1958, have remained unpaid for a period exceeding three months from the date such fees or taxes were due; or

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3. in the case of a public service vehicle, it is not covered by a valid certificate of fitness; or
4. the authority has reasons to believe that the vehicle i s in such a Condition that its use in a public place would constitute a danger to the public, or that it fails to comply with the requirements of Chapter VI or of the rules made there under; or
5. a substantially false statement has been made in the application for registration of the vehicle; or

(f) the registration certificate has been deliberately defaced or mutilated or unauthorised additions or alterations have been made therein;
and such suspension shall remain inforce till the vehicle is duly insured as required by Saw, or the fees or taxes have been paid, or a valid certificate of fitness in respect of the vehicle has been obtained, or the defects are remedied to the satisfaction of such authority, or the false statement in the application for registration has been replaced by a correct statement in the prescribed manner, as the case may be.

(2) A registering authority or any prescribed authority may after giving the owner an opportunity of making any representation he may wish to make and for reasons to be recorded in writing, suspend for a period not exceeding six months, the certificate of registration of a vehicle, if it is satisfied that—
(i) the vehicle is used for subversive activities against the State; or.
(ii) the vehicle is used for hire or reward without obtaining a permit from the Provincial or a Regional Transport Authority as required under section 44; or
(iii) the vehicle has been found by a Court to have been used by the owner of the vehicle or with his knowledge or connivance in the commission of a cognizable offence punishable with imprisonment of not less than five years.

1. An authority other than a registering authority shall making a suspension order under sub-section (1), intimate in writing the act of suspension and the reasons therefor to the registering authority within whose jurisdiction the vehicle is at the time of the suspension.
2. A registering authority or other prescribed authority suspending the registration certificate of a motor vehicle under this section shall communicate the fact of suspension together with the reasons therefor in writing to the owner of the vehicle, and the owner shall thereupon forthwith surrender to that authority the certificate of registration and any token or card issued to authorise the use of the vehicle in a public place.
3. Where the registration of a motor vehicle has been suspended under sub-section (1) for a continuous period of not less than one month, the registering authority, within whose jurisdiction the vehicle was when the registration was suspended, shall, if it is not the original registering authority, inform that authority of the suspension, and when the suspension has continued with out interruption for a period of not less than six months, the registering authority within whose jurisdiction the vehicle was when the registration was suspended may, if it is the

original registering authority, cancel the registration and the entry relating to the vehicle in its records, and if it is not the original registering authority, shall forward the certificate of registration and any token or card surrendered under sub-section (4) to that authority which may cancel it forthwith.

(6) The certificate of registration and any token or card surrendered under sub-section (4) shall be returned to the owner when the order suspending registration is rescinded.

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| 35. (1) If a motor vehicle has been destroyed or has been rendered permanently incapable of use, the owner shall, as soon as may be, report the fact to the registering authority within whose jurisdiction he resides and shall forward to that authority the certificate of registration of the vehicle together with any token or card issued to authorise the use of the vehicle in a public place. | Cancellation of registration |

(2) The registering authority shall, if it is the original registering authority, cancel the registration and the certificate of registration, or, if it is not, shall forward the report and the certificate of registration, to the original registering authority and that authority shall cancel the registration and the certificate of registration.

1. Any registering authority may order the examination of another vehicle within its jurisdiction by such authority as Government may by order appoint and, if upon such examination and after giving the owner an opportunity to make any representation he may wish to make it is satisfied that the vehicle is in such a condition that its use in a public place would constitute a danger to the public and that it is beyond reasonable repair, may, for reasons to be recorded in writing, cancel the registration of the vehicle.
2. If a registering authority is satisfied that a motor vehicle has been permanently removed out of the Province, it shall cancel the registration of the vehicle.
3. A registering authority or any prescribed authority cancelling the registration of a motor vehicle under this section shall communicate the fact, together with the reasons therefor, in writing to the owner of the vehicle and the owner of the vehicle shall thereupon forthwith surrender to that authority the certificate of registration of the vehicle and any token or card issued to authorise the use of vehicle in a public place.
4. A registering authority making an order of cancellation under this section shall, if it is the original registering authority, cancel the certificate of registration and the entry relating to the vehicle in its records, and if it is not the original registering authority, intimate in writing the fact of cancellation and the reasons therefor, and forward the certificate of registration and any token or card surrendered to it under subsection (6) to the original registering authority, and that authority shall cancel the certificate of registration and the entry relating to the motor vehicle in its records.

5. The expression "original registering authority" in this section and in section 31, 32, 33 and 34 means the registering authority in whose records the registration of the vehicle is recorded.

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| Appeals. | 36. (1) Any owner of a motor vehicle aggrieved by an order of refusal to register a motor vehicle made under section 28 or to issue a certificate of fitness made under-sub-section (l)of section 39 or by an order of suspension or cancellation of registration made under section 34 or 35 or by an order of cancellation of the fitness certificate made under sub-section (3) of section 39 may, within thirty days of the date on which he has received notice of such order, appeal against the order in the prescribed manner to the prescribed authority. |

(2) The appellate authority shall give notice of the appeal to the original authority, and after giving opportunity to the original authority and the appellant to be heard either personally or by pleader in the appeal, pass such orders as it thinks fit.

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| 37. (1) A registering authority shall refuse to register any transport vehicle, other than a motor cab unless the application for registration is accompanied by a document in Form H as set forth in the First Schedule signed by the maker of the vehicle or an assembler duly authorised by the maker in this behalf stating the maximum laden weight and maximum axle weights for which the vehicle is and the several axles are designed. | Special requirement for registration of transport vehicles. |

(2) Where a transport vehicle or chassis, as the case may be, has affixed to it a metal plate, bearing the stamp of the maker or assembler and identified as appertaining to the particular vehicle or chassis to which it is attached, which contains the particulars specified in sub-section (1), that plate may at the discretion of a registering authority be deemed to be the document referred to in that sub-section.

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| 38. A registering authority, when registering a transport vehicle other than a motor cab, shall enter in the record of registration and shall also enter in the certificate of registration of the vehicle the following particulars, namely— | Special particulars be recorded on registration of transport vehicles. |

1. the unladen weight of the vehicle;
2. the number, nature and size of the tyres attached to each wheel;
3. the laden weight of the vehicle and the axle weights pertaining to the several axles thereof, determined in accordance with the tyre and Rim Manufactures Association load ratings for tyres is revised from time to time and approved by the Provincial Transport Authority.

4. if the vehicle is used or adapted to be used for the carriage of passengers solely or in addition to goods, the number of passengers for whom accommodation is provided,

and the owner of the vehicle shall have the said particulars exhibited in the prescribed manner on the vehicle.

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| 39. (1) subject to the provision of section 40, a transport vehicle shall not be deemed to be validly registered for the purposes of section 23, unless it carries a certificate of fitness in Form I as set-forth in the First Schedule, issued by the prescribed authority, to the effect that the vehicle complies for the time being with all the requirement of Chapter VI and the rules made thereunder; and where the prescribed authority refuses to issue such certificate, it shall supply the owner of the vehicle with its reasons in writing for suca refusal. | Certificate of fitness of transport vehicle. |

(2) Subject to the provisions of sub-section (3), a certificate of fitness shall remain effective for three years unless a shorter period, not being in any case less than six months, is specified in the-certificate by the 1[authority issuing the certificate] *[. . . . ]

2[Provided that in case of a permit issued under section 60(1) (a), a certificate of fitness shall remain effective for a period of six months and on the expiry of that period the permit shall be deemed to be suspended until a new certificate of fitness has been obtained;]

(3) The 3[ ..] prescribed authority may, for reasons to be recorded in writing, cancel a certificate of fitness at any time if satisfied that the vehicle to which it relates no longer complies with all the requirements of this ordinance and the rules made thereunder; and on such cancellation, the certificate of registration of the vehicle and any permit granted in respect of the vehicle under Chapter IV shall be deemed to be suspended until a new certificate of fitness has been obtained.

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| Registration of vehicles the property of the 4[federal] Government. | 40. (1) The authorities specified in Part B of the Fourth Schedule may register any motor vehicle which is the property or for the time being under the exclusive control of the 4[Federal Government;] and any vehicles so registered shall not, so long as it remains the property or under the exclusive control of the 4[Federal] Government, require to be registered otherwise under this ordinance. |

1. A transport vehicle registered under this section shall carry a certificate of fitness in Form T as set forth in the First Schedule issued by the authority referred to in sub-section (1).
2. An authority registering a vehicle under sub-section (1) shall assign to it a registration mark in accordance with the provisions contained in the Fourth

Schedule and shall issue a certificate in respect of the vehicle that the vehicle has been registered under this section.

3. If a vehicle registered under this section ceases to be the property or under" the exclusive control of the 4[Federal] Government, the provisions of section 24 shall thereupon apply.
4. The authority registering a vehicle under sub-section (1) shall furnish to Government all such information regarding the general nature, over all dimensions, and axle weight of the vehicle as Government may at any time required.

1. In section 39, in sub-section (2), the words "prescribed authority", the words "authority issuing the certificate", subs by W. P. Ord. IX of 1970. *Subs . . . . .ibid

1. After sub-section (2). the proviso added by . . . . .ibid.
2. In sub-section (3), the words "issuing authority or other" omitted . . . . ibid.

4. Subs: by P. O. 4 of 1975.

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| 1[41. Notwithstanding any thing contained in this Chapter and the Sixth Schedule, Government may, by rules prescribe a special procedure for the registration of any class, or type or category of motor vehicles, or motor vehicles belonging to a specified class of persons, and such rules may among other matters provide for— | Special registration of vehicle. |

1. the appointment of a special registration authority for such motor vehicles; and
2. special registration mark to be carried by such motor vehicles].

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| 42. (1) The registration mark assigned to a trailer shall be displayed in the prescribed manner on the side of the vehicle. | Application of chapter III to trailers. |

(2) No person shall drive a motor vehicle to which a trailer is or trailors are attached unless the registration mark of the motor vehicle so driven is displayed in the prescribed manner on the trailer or on the last trailer in the train, as the case may be.

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| 43. (1) Government may make rules for the purpose of carrying into effect the provisions of this Chapter. | Power to make rules. |

(2) Without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely,

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1. the conduct and hearing of appeals that may be preferred under this Chapter, the fees to be paid in respect of such appeals and the refund of such fees;
2. the appointment, functions and jurisdiction of registering and other prescribed authorities;
3. the issue of certificates of registration and certificates of fitness and duplicate of such certificates to replace certificates lost, destroyed or mutilated;
4. the temporary registration of motor vehicles, and the issue of temporary certificates of registration and marks;
5. the manner in which registration marks and the particulars referred to in section 38, and other pre scribed particulars shall be exhibited;

2[(ee) the authorising of suitable automobile workshops to issue certificate of fitness, the licensing of such workshops; the equipment and apparatus to be maintained by such workshops, their

1. Section 41 subs by W.P. Ord. No. XXXIX of 1965, s, 2.
2. Clause (ee) Ins. by W. P. Ord IX of 1970.

inspection, the terms and conditions and the period for which, and the authorities by whom, the licences may be granted and renewed and the fees to be paid for the grant and renewal of the licences;

(f) the fees to be charged for the issue of alteration of certificates of registration, for certificates of fitness, for registration marks, and for the examination or inspection of motor vehicles, and the refund of such fees;

(g) the exemption of prescribed persons or prescribed classes of persons from payment of all or any portion of the fees payable under this Chapter;

(h) the forms, other than those set forth in the First Schedule to be used for the purposes of this Chapter;

(i) the communication between registering authorities of particulars of certificates of registration and by owners of vehicles registered outside the Province of particulars of such vehicles and of their registration;

(j) the particulars to be furnished by the owner of any motor vehicle to the registering authority, upon the transfer of possession of the motor vehicle under the terms of a hiring agreement;

(k) the extension of the validity of certificates of fitness pending consideration of applications for their renewal;

(j) the exemption from the provisions of this Chapter and the conditions and fees for exemption, of motor vehicles in the possession of dealers;

(m) the exemption of road-rollers, graders and other vehicles designed and used solely for the construction, repair and cleaning of roads from all or any of the provisions of this Chapter and the rules made thereunder, and the conditions governing such exemption; and the exemption of light goods vehicles from the provisions of section 39 and the conditions governing such exemption.

## CHAPTER—IV
## CONTROL OF TRANSPORT VEHICLES

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| Transport vehicles not to be used or driven without permit | 44. (1) No owner of a transport vehicle shall use or permit the use of, and no driver of a transport vehicle shall drive or cause or permit to be driven, the vehicle in any public place, save in accordance with the conditions of a permit authorising the use or driving of the vehicle in such place granted or countersigned by a Regional or Provincial Transport Authority : |

Provided that a stage carriage permit shall, subject to any conditions that may be specified in the permit, authorise the use of the vehicle as a contract carriage:

Provided further that a stage carriage permit may, subject to any conditions that may be specified in the permit, authorise the use of the vehicle as a goods vehicle either when carrying passengers or not:

Provided also that a public carrier's permit shall, subject to any conditions that may be specified in the permit authorise the holder to use the vehicle for the carriage of goods for or in connection with a trade or business carried on by him.

(2) In determining, for the purposes of this Chapter, whether a transport vehicle is or is not used for the carriage of goods for hi' e or reward—

1. the delivery or collection by or on behalf of the owner of goods sold, used or let on hire or hire-purchase in the course of any trade or business carried on by him other than the trade or business of providing transport;
2. the delivery or collection by or on behalf of the owner of goods which have been or which are to be subjected to a process or treatment in the course of a trade or business carried on by him ; or
3. the carriage of goods in a transport vehicle by a manufacturer of or agent or dealer in such goods whilst the vehicle is being used for demonstration purposes.

shall not be deemed to constitute a carrying of the goods for hire or reward; but the carriage in a transport vehicle of goods by a person not being a dealer in such goods who has acquired temporary ownership of the goods for the purpose of transporting them to another place and there relinquishing ownership shall be deemed to constitute a carrying of the goods for hire or reward.

(3) Sub-section (1) shall not apply—

1. to any transport vehicle owned by or on behalf of the 1[Federal] or any Provincial Government and used for public purposes unconnected with any commercial enterprise;
2. to any transport vehicle owned by a local authority or by a person acting under contract with a local authority and used solely for road cleaning, watering or conservancy purposes.

1. The word "Central" the word "Federal" subs by P. O. 4 of 1975.

1. to any emergency vehicle;
2. to any transport vehicle used, for any other public purpose prescribed in this behalf;
3. to any transport vehicle used solely for conveyance of corpses:

(f) to any transport vehicle used for towing a disabled vehicle or for removing goods from a disabled vehicle to a place of safety;
(g) to any school bus; or
(h) to any trailer used for any purpose other than the carriage of goods for hire or reward when drawn by a motor vehicle constructed for the carriage of not more than six passengers excluding the driver.

(4) Subject to the provisions of sub-section (3), sub-section (1) shall, if Government by rules made under section 69 so prescribes, apply to any motor vehicle adapted to carry more than nine passengers excluding the driver.

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| Permission to drive transport vehicle registered in other Province | 1[44—A<br>A transport vehicle registered in any other Province may be allowed to be driven within the Province.— |

(a). In the case of a transport vehicle for which a permit has been issued by general or special resolution of the Provincial Transport Authority; and.
(b) in any other case, by general or special order of the Government;
subject to such terms and conditions as may be specified by the Provincial Transport Authority or Government in the said resolution or order as the case may be.]

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| Power of Government to control road transport. | 45. (1) Government, having regard to—<br>1. the advantages offered to the public, trade and industry by the development of motor transport; and |

1. the desirability of—

1. Inserted by N. W. F. P. Ord. No. I of 1972 S.3.

(i) co-ordinating road and rail transport;
(ii) preventing the deterioration of the road system; and
(iii) preventing uneconomic competition among transport vehicles,
and after having heard the representatives of the interests affected and having consulted the Provincial and Regional Transport Authorities concerned, may, for reasons to be

recorded in writing, by a notification in the official Gazette—
(i) prohibit or restrict throughout the Province or in any area or on any route within the Province, subject to such conditions as it may think desirable, the conveying of long distance goods traffic generally or of prescribed classes of goods, by private or public carriers; or.
(ii) fix maximum or minimum fares or freights for stage carriages and public carriers to be applicable throughout the Province or within any area or on any route within the Province.

(2) Notwithstanding anything in sub-section (1), Government may, by notification under this sub-section, cancel generally or in relation to a specified area any permit or class of permits granted under this Chapter in respect of transport vehicles in order to enable the 1[Board] constituted under section 70 to use its transport vehicles on the routes thus rendered vacant:

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| Provided that the provision of section 22 of the West Pakistan General Clauses Act, 1956 as to previous publication shall apply to a notification under this sub-section, and for the purposes of the said section, a notification under this sub-section shall be deemed to be a rule made under an Act. | West Pakistan VI of 1956. |

(3) Government may direct the Provincial Transport Authority or a Regional Transport Authority not to grant or issue any permit (if already granted but not issued) or to restrict the grant of fresh permits to a specified number on any route or routes or part of a route on which the Corporation is already operating motor transport or intends to do so.

*Explanation*— For the purpose of this sub-section "route" includes any combination of routes or an elongation of a route.

1. In sub section (2), subs for the word (Corporation) by Ord V of 1972

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| Transport Authorities. | 46. (1) Government shall by notification in the official Gazette, constitute— |

(i) a Provincial Transport Authority to exercise and discharge throughout the Province the powers and functions specified in sub-section (6); and
(ii) Regional Transport Authorities to exercise and discharge throughout such areas (in this Chapter specified in the notification, in respect of each Regional Transport Authority, the powers and functions conferred by or under this Chapter on such authorities:

Provided that the area specified as the region of a Regional Transport Authority shall in no case be less than an entire District.

(2) The Provincial Transport Authority or a Regional Transport Authority shall consist of such number of 1[Government officers] as Government may think fit to

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appoint, but no person who has any financial interests whether as proprietor, employee or otherwise in any transport undertaking, shall be appointed or continue as a member of the Provincial or a Regional Transport Authority.

*Explanation.*— A person shall not be deemed to have any financial interest in a transport 'undertaking for the purposes of this section merely by reason of the fact that he is a member or an employee of the Railway Board or is a person in the service of Pakistan or serving under the 2[Board.]

1. If any person who is appointed as member of the Provincial or a Regional Transport Authority has any such interest in transport undertaking as is referred to in sub section (2),he shall forthwith give notice of the same in writing to Government.
2. If any member of the Provincial or a Regional Transport Authority during his term of office acquires any such interest in a transport undertaking as is referred to in sub-section (2) he shall within four weeks of acquiring such interest give notice of the same in writing to Government, and shall on the giving of such notice cease to be such member.

(5) If any person becomes a member or continues to remain as a member of the Provincial or a Regional Transport Authority in contravention of the provisions of this section he shall be deemed to have committed an offence against this Ordinance.

1. In section 46, in sub-section (2), the words" officials and non-officials" , the words "Government officers" substituted by W. P. Ordinance No. IX of 1970, S.4.
2. Subs for the word "Corporation by Ord V of 1972.

(6) The Provincial Transport Authority shall exercise and discharge the following powers and functions, namely:—

(i) to co-ordinate and regulate the activities and policies of the Regional Transport Authorities. (ii) to perform the duties of a Regional Transport Authority-

(a) where theres is no such authority; or

(b) where there is such authority, if it thinks fit so to do and if so required by that authority;

(iii) to settle all disputes and decide all matters on which differences of opinion arise between the Regional Transport Authorities; and

(iv) to discharge such other functions as may be prescribed.

1. The Provincial Transport Authority may, subject to such conditions as may be prescribed, issue to a Regional Transport Authority such orders and directions of general character in respect of road transport as it may deem necessary, and the Regional Transport Authority shall give effect to all such orders and directions.
2. The Provincial Transport authority and any Regional Transport Authority, if authorised in this behalf by rules made under section 69, may delegate such of its

powers and functions to such authority, or person and subject to such restrictions, limitations and conditions as may be prescribed by the said rules.

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| 47. (1) Every application for a permit shall be made to the Regional Transport Authority of the region o of one of the regions in which it is proposed to use the vehicle or vehicles and, if the applicant resides or has his principal place of business in any one of those regions, to the Regional Transport Authority of that region. | General provisions as to applications for permit. |

(2) Nothing in sub-section (1) shall apply to road transport services operated by the 1[Board]

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| 2[48 (1) An application for a permit to use a motor vehicle as a stage carriage (in this Chapter referred to as a stage carriage permit) shall contain the following particulars, namely:- | Application for stage carriage permits. |

(a) the name and address of the applicant;

1. Subs by N.W, F. P. Ord. No. V of 1970.
2 Subs: by W. P. Ord. No, IX of 1970,

1. the registration number, type model and seating capacity of the vehicle in respect of which the application is made;
2. the route or routes on which or the area within which it is intended to use the vehicle; and.
3. such other matters as may be prescribed.

(2) An application for a permit shall be accompanied by an affidavit of the applicant to the effect that he is the actual owner of the motor vehicle in respect of which the application is made.

*Explanation.* For the purposes of this Chapter, "actual owner" means a person or body of persons having Proprietary right in a motor vehicle, acquired by way of purchase, gitt, inheritance, 01 under a hire-purchase agreement, or as a result of he settlement of a lawful claim].

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| Procedure for grant of applications for stage carriage permits. | 1[49 (1) Where an application for stage carriage permit conforming to the provisions of section 48 has been received by the Regional Transport Authority, it shall, on the payment of the prescribed fee, and on the applicant furnishing to the Regional Transport Authority, a bank guarantee of the prescribed sum as security for payment of any compensation that applicant may be required to pay under the provisions of section 67, grant a permit-to the applicant in the prescribed form in |

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| | respect of the motor vehicle specified in the application: |

Provided that where any such permit granted in respect of the vehicle for which the permit is applied for has been suspended or cancelled, the Regional Transport Authority.—
(a) shall not, during the period of suspension of the previous permit, grant a permit in respect of the vehicle;
(b) may, in case of cancellation of previous permit, for reason to be recorded in writing, a copy whereof shall be granted to the applicant free of cost, refuse to grant a permit 2[for a period not exceeding three months whereafter the applicant may make a fresh application for the grant of stage carriage permit]

1. Subs by W. P. Ord. No. IX of 1970,
2. Inserted by W. P. Ord. No. XXV of 1970. S.2.

1[2. No security in the from of bank guarantee shall be required in respect of

1. a stage carriage permit authorising the plying of a stage carriage in an urban area, and
2. any other stage carriage permit if :—

2[(i) the applicant furnishes a certificate, duly issued by the West Pakistan Transporter's Mutual Assistance Cooperative Society Limited Lahore, or by any Transporter's Mutual Assistance Co-operative Society registered with the Registrar Co-operative Societies North-West Frontier Province, showing him as member thereof.]
(ii) the certificate so issued remains valid, and
(iii) such certificate is not with drawn.]

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| [50. (1) A condition shall be inserted in every stage carriage permit that in case of death of, or injury to grant passenger in the vehicle to which permit relates arising out of the use of the Vehicle, there shall be paid by the permit holder as compensation— | Conditions for grant of stage carriage permits. |

1. in case of death of a passenger, a sum of rupees eight thousand to the legal representatives of the diseased passenger; and
2. in case of an injury to a passenger, the amount specified in the Thirteenth Schedule, to the injured passenger.

2. A Regional Transport authority may attach to a stage carriage permit any prescribed condition or any or all of the following conditions, namely:—
(i) that the service specified in the permit shall be commenced not later than a specified date and be continued for a specified period:

(ii) that a specified number of return trips of daily service shall be maintained on the route or routes specified in the permit and that they may be varied only in accordance with specified conditions;
(iii) that the stage carriage shall be used only on specified routes or in specified areas;

1. Subs by W. P. Ord, No, XXV of 1970. s. 2.
2. Subs: by N. W. F. P. Ord No. IV of 1970, S.2.
3. Subs: in W. P. Ord. No. IX of 1970,

(iv) that copies of the fare table and time table approved by the Regional Transport Authority shall be exhibited on the stage carriage and its stands and stops on the route, and that the time table and fare-table so exhibited shall be observed.
(v) that not more than a specified number of passengers and not more than a specified amount of luggage shall be carried on any stage carriage at any one time.
(vi) that within municipal limits and in such other areas and places as may be prescribed, passengers shall not be taken up or set down except at specified places;
(vii) that the permit holder shall maintain such accounts and records of the operation of the service and shall submit such financial and statistical returns as may be required by the Regional or Provincial Transport Authority, and that the records and the accounts shall be produced for inspection before the person or persons authorised in this behalf by the Regional or Provincial Transport Authority; and.
(viii) that tickets shall be issued to passengers for the fares paid.

3. The Provincial Transport Authority or a Regional Transport authority may regulate the timings of departure of stage carriages, whether they belong to one or more owners.]

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| Application for contract carriage permits. | 51. An application for permit to use a motor vehicle as a contract carriage (in this Chapter referred to as contract carriage permit) shall contain the following particulars, namely:- |

1(a) the name and address of the applicant.
(aa) the type and seating capacity of the vehicle;]

1. the area for which the permit is required;
2. 2[X X X X X X X X X X X X]
3. any other particulars which may be prescribed.

1. Inserted by W. P. Ordinance No. IX of 1970, s.8.
2. Clause (c) omitted by ibid S.9.

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| | Procedure of Regional Transport |

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| 52. A Regional Transport Authority, shall, in deciding whether to grant or refuse a contract carriage permit, have regard to the extent to which additional contract carriage may be necessary or desirable in the public interest; and shall also take into consideration any representations made by persons already holding contract carriage permits in the region or by any authority or police authority in the region to the effect that the number of contract carriages for which permits have already been granted is sufficient for or in excess of the needs of the region of any area within the region. | Authority in considering application for contract carriage permits. |
| 53. 1[(1)] A Regional Transport Authority may, after consideration of the matters specified in section 52—<br>1. fix the number of contract carriages generally or contract carriages of any specified type for which contract carriage permits may be granted in the region or any specified area within the region; | Power to restrict the number of contract carriage and impose conditions on contract carriage permits. |

1. refuse to grant a contract carriage permit or grant a contract carriage permit in respect of a particular contract carriage or a particular service of contract carriages in such form as it may, subject to the rules made under section 69, deem fit; Provided that no person shall be granted a contract carriage permit for any area not specified in the application made by him under section 51;

(c) attach to the contract carriage permit any prescribed condition or all or any one of the following conditions, namely :—

(i) that the contract carriage or contract carriages shall be used, only in a specified area or on a specified route or routes;

(ii) that except in accordance with specified conditions no contract or hiring may be entered into for transporting goods or passengers in the contract carriage or carriages outside a specified area;

(iii) that subject to specified conditions, goods may be carried in a contract carriage to the exclusion of or in addition to passengers;

(iv) that in the case of motor cabs, specified fares shall be charged and a table of fares displayed on the vehicle;

1. In section 53, re-numbered as (1) by W.P. Ord. No. IX. of 1970, s. 9.

(v) that in the case of vehicles other than motor cabs specified rates of hiring not exceeding specified maximum shall be charged;

(vi) that in the case of motor cabs, a specified weight of passengers, luggage shall be carried free of charge and a specified charge shall be made for any luggage in excess of the luggage to be carried free of charge;
(vii) that a taxi meter shall be fitted to every motor cab;
(viii) that specified conditions of the permit shall be liable to be varied, and that further specified conditions may be attached to the permit by the authority at any time on due notice being given to the permit holder;
(ix) that the conditions of the permit shall not be departed from save with the approval of the authority.

[(2) There shall be inserted in every contract carriage permit other than such permit in respect of a motor cab, a condition that in case of death of , or injury to, a passenger in the vehicle to which the permit relates arising out of the use of the vehicle, there shall be paid by the permit holder as compensation—

1. In case of death of a passenger, a sum of rupees eight thousand to the legal representatives of the deceased passenger; and
2. In case of an injury to a passenger, the amount specified in the Thirteenth Schedule, to the injured passenger.

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| Application for private carriers permits. | 54. An application for a permit to use a transport vehicle for the carriage of goods for or in connection with a trade or business carried on by the applicant (in this Chapter referred to as a private carrier's permit) shall contain the following particulars, namely:— |

1. the type and carrying capacity of the vehicle;
2. the nature of the goods which the applicant expects normally to canny in connection with his trade or business;
3. the area for which the permit is required; and
4. any other particulars which may be prescribed.

1. In section 53, after clause (ix). sub-section (2) added by W. P. Ord. No. IX of 1970, S.9.

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| 55. (1) Where an application conforming to the provisions of section 54 for a private carrier's permit has been received by the Regional Transport Authority, it shall, if satisfied that the vehicle or vehicles for which, the permit is required will not be used except in connection with the business of the applicant, such business not being transport business, grant the applicant, on the payment of the prescribed fee, a permit in the prescribed form in respect of the vehicle or vehicles specified in the application: | Procedure of regional transport authority in considering application for a private carrier’s permits. |

Provided that the Regional Transport Authority may, for reasons to be recorded in writing, a copy whereof shall be granted free of cost to the applicant, refuse to grant a permit, where—

(i). the applicant is the holder of a private carrier's permit which has been suspended; or
(ii) any such permit previously held by the applicant has been cancelled; or.
(iii) any such permit previously granted in respect of the vehicle or vehicles for which the permit is applied for has been suspended or cancelled.

1. A Regional Transport Authority may in granting a private carrier's permit impose conditions to be specified in the permit relating to the description of goods which may be carried, or the area in which the permit shall be valid, or the maximum laden weight and axle weight of any vehicle used.
2. A Regional Transport Authority may on the application of the holder of a private carrier's permit granted by it and subject to such conditions as it may attach, extend the operation of the permit to the region or to any area within the region of another Regional Transport Authority, and the requirements of section 65 as to counter-signature of permits shall not be applicable to any such permit:

Provided that nothing in this section shall authorise a Regional Transport Authority to grant a permit effective solely within the region of an other Regional Transport Authority.

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| 56. An application for a permit to use a motor vehicle for the carriage of goods for hire or reward (in this Chapter referred to as a public carrier's Permit) shall be made on the prescribed form and shall contain the prescribed particulars. | Application for public carrier’s permits. |
| 57. (1) Where an application for a public carrier's permit conforming to the provisions of section 56 has been received by a Regional Transport Authority, it shall, on payment of the prescribed fees, grant a permit in the prescribed form in respect of the vehicle or vehicles specified in the application: | Procedure of regional transport authority in considering application for a private carrier’s permits . |

Provided that the Regional Transport Authority may refuse to grant the permit where—
(i) the applicant is the holder of a public carrier's permit which has been suspended; or
(ii) any such permit previously held by the applicant has been cancelled; or
(iii) any such permit previously granted in respect of the vehicle or vehicles for which the permit is applied for has been suspended or cancelled.

(2) A Regional Transport Authority may on the application of the holder of a public carrier's permit granted by it, and subject to such conditions as it may attach, extend the operation of the permit to the region or to any area within the region of

another Regional Transport Authority and the requirements of section 65 as to countersignature of permits shall not be applicable to any such permit:

Provided that nothing in this section shall authorise a Regional Transport Authority to grant a permit effective solely within the region of another Transport Authority.

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| Power to restrict the number of and attach conditions to public carriers permits. | 58. The Regional Transport Authority may attach to a public carrier's permit all or any of the following conditions, namely:—<br>(i) that the vehicle shall be used only on specified routes or in a specified area;<br>(ii) that the laden weight and the axle weights of any vehicles used shall not exceed a specified maximum; |

(iii) that such records as may be prescribed relating to the plying of the vehicles shall be maintained; and

(iv) that the vehicle used shall comply with such other specified condition or conditions appropriate to the service which the Regional Transport Authority thinks proper to impose in the public interest or with a view to prevent uneconomic competition between road transport services.

1(1) application for a permit of any kind may be made at any time.

2[2, 3, 4, 5 and 6]

Procedure in applying for and granting permit.

1. Sub-section (1) of section 59, subs, by W. P. Ord. IX of 1970, s. 10.
2. Sub-sections (2) and (3), omitted ibid.

(7) When a Regional Transport Authority refuses an application for a permit of any kind it shall give to the applicant in writing its reasons for the refusal.

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| 60. 1[(1) A permit other than a special permit issued under section 64 shall be effective without renewal. | Duration and renewal of permit. |

1. in the case of stage carriage permit or a contract carriage permit, not being a permit to ply a motor-cab, for such period not being less than one year and not more than three years, as the Regional Transport Authority may after considering the condition of the bus for route in question in its discretion specify in the permit; and
2. in the case of any other permit, for such period not being less than three years and not more than five years, as the Regional Transport Authority may, in its discretion specify in the permit].

(2) A permit may be renewed on an application made in that behalf in the prescribed manner and on payment of the prescribed fee for a period specified in sub-section (1).

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| 61. (1) Save as provided in section 62, a permit shall not be transferable from one person to another except with the permission of the transport authority which granted the permit and shall not without such permission operate to confer on any person to whom a vehicle covered by the permit is transferred any right to use that vehicle in the manner authorized by the permit. | General condition attaching to all permit. |

1. The holder of a permit may, with the permission of the authority by which the permit was granted, replace by another vehicle of the same or substantially similar nature and capacity any vehicle covered by the permit.
2. The following shall be conditions of every permit:
3. that the vehicle or vehicles to which the permit relates are at all times so maintained as to comply with the requirement of Chapter VI and the rules made thereunder;
4. that the vehicle or vehicles to which the permit relates are not driven at a speed exceeding the speed permissible under this Ordinance;
5. that any prohibition or restriction imposed and any maximum or minimum fares or freights fixed by

1. Sub-section (1) of section 60, subs by W. P. Ord. IX of 1970, s. 1.

notification made under section 45 are observed in connection with any vehicle or vehicles to which the permit relates;
(d) that the vehicle or vehicles to which the permit relates are not driven in contravention of the provision of section 76;
(e) that the permit holder shall furnish to the Provincial Transport Authority or a Regional Transport Authority or an officer of the Transport Department authorized in this behalf, within such period of time as may be fixed by that authority or the officer, such information relating to the vehicle or vehicles covered by the permit or the permit holder's business as a carrier as may be required by that authority or officer;

1. that the provisions of any law for the time being in force in the Province relating to insurance of motor vehicles so far as they apply to the holder of the permit are observed; and
2. that the permit holder's business premises shall be according to a design approved by the Provincial Transport Authority and maintained properly.

*Explanation*— In this clause, business premises include bus stations, shelters, garages and repair shops for the vehicle or vehicles to which the permit relates.

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| | 62. (1) The transport authority which granted a permit may cancel the |

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| Cancellation and suspension of permit. | permit or may suspend it for such period as it thinks fit. |

1. on the breach of any condition specified in sub-section (3) of section 61 or of any other condition contained in the permit; or
2. if the holder of the permit uses or causes or allows a vehicle to which the permit relates to be used in any manner not authorized by the permit; or
3. if the holder of the permit ceases to possess the vehicle or vehicles covered by the permit; or

(d) if the holder of the permit has obtained the permit by fraud of mis-representation; or.
(e) if the holder of a public carrier's permit fails, without reasonable cause, to ply the vehicle: or

(f) if the holder of the permit uses or causes or allows the vehicle or vehicles to be used for subversive activities against the State; or
(g) if the holder of the permit uses or causes or allows the vehicle or vehicles to be used for the transport of goods the movement of which is banned under any law for the time being in force, or for the commission of a cognizable offence; or
(h) if a forgery has been committed in respect of the permit or it has in any way otherwise been tampered with:

Provided that no permit shall be cancelled unless an opportunity has been given to the holder of the permit to submit his explanation and of being heard.

(2) Where a transport authority cancels or suspends permit, it shall record in writing its reasons for the cancellation or suspension and shall give a copy thereof to the holder of the permit.

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| 63. (1) Where the holder of a permit dies, the person succeeding to the possession of the vehicle or vehicles covered by the permit may, for a period of three months, use the permit as if it had been granted to himself: | Transfer of permeation death of holders. |

Provided that such person has, within thirty days of the death of the holder, informed the transport authority which granted the permit of the death of the holder and of his intention to use the permit:

Provided further that no permit shall be so used after the date on which it would have ceased to be effective without renewal in the hands of the deceased holder.

(2) The transport authority may, on application made to it within three months of the death of the holder of a permit, transfer the permit to the person succeeding to the possession of the vehicles covered by the permit.

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| 1[64]. (1) Regional Transport Authority may grant special permits, to be effective for one return trip only, authorising the use of motor vehicle for that trip as a public-service vehicle. | Special permits. |

1. Section 64. subs, by W.P. Ord No. IX of 1970, s.12.

(2) A Regional Transport Authority may, subject to such-conditions as it may impose in this behalf, delegate its powers of issuing a permit under sub section (1) to its chairman, any member or any gazetted Officer of Government].

1[65 . . . . . ]

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| Appeals | 66. (1) Any person - |

1. aggrieved by the refusal of the Provincial or a Regional Transport Authority to grant a permit, or by any condition attached to a permit granted to him; or
2. aggrieved by the cancellation or suspension of the permit or by any variation of the condition thereof; or
3. aggrieved by the refusal to transfer the permit to the person succeeding on the death of the holder of a permit to the possession of the vehicle or vehicles covered by the permit; or
4. aggrieved by the refusal of the Provincial or a Regional Transport Authority to countersign a permit, or by any condition attached to such countersignature ; or
5. aggrieved by the refusal to renew a permit; or

(f) being a local authority or police authority or an association which, or a person providing transport facilities who, having opposed the grant of a permit, is aggrieved by the grant thereof or by any condition attached thereto; or.

1. Section 65, omitted by Ord. No. IX of 1970, s.12

(g) being the holder of a licence, who is aggrieved by the refusal ot Regional Transport Authority to grant an authorisation to drive a public service vehicle,
may, within thirty days and in the prescribed manner, appeal to the prescribed authority, who after giving such person and the original authority an opportunity of being heard, pass such order, not inconsistent with the provisions of this Ordinance or the rules framed thereunder, as it may deem fit:

Provided that the appellate authority shall not increase the number of permits granted by the Provincial Transport Authority or a Regional Transport Authority.

1. No appeal shall lie against any order passed under subsection (2) of section 45.

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2. Save as expressly provided in this Ordinance, no Court or other authority shall have jurisdiction.—

(a) to entertain or adjudicate upon any matte which the Provincial or a Regional Transport Authority or the prescribed authority is empowered by this Ordinance to dispose of or to determine; or.
(b) to question the legality of any thing done under this Ordinance by or at the instance of the Provincial o a Regional Transport Authority or the prescribed authority.

(4) No Court or other authority shall be competent to grant an injunction or other order in relation to any proceedings before Provincial or a Regional Transport Authority or the prescribed authority under this Ordinance, or anything done or intended to be done by or at the instance of any such authority under this Ordinance.

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| 1[67. (1) In the case of death of, or injury to, a passenger in a stage carriage or a contract carriage, other than a contact carriage constructed, adapted or used to carry not more than six passengers including the driver, arising out of the use of such carriage, there shall be paid, if a permit has been granted in respect of that carriage, by the holder of the permit, and, if no permit has been so granted, by the owner of the carriage, as compensation the amount specified in the Thirteenth Schedule, | Compensation for the death of or injury to a passenger. |

(a) in the case of death of a passenger, to the legal representatives of the deceased passenger; and.

1. Section 67, subs, by Ord. No. VIII of 1978, s. II.

(b) in the case of an injury to a passenger, to the injured passenger.

2. The compensation payable under sub-section (1) shall be in addition to any sum which the person entitled to receive compensation may receive or be eligible to receive under a policy of insurance under the provisions of section 95 of the Motor Vehicles Act, 1939 (IV of 1939).

(3) Any contract for the conveyance of a passenger in a stage carriage or contract carriage, other than a contract carriage constructed, adapted or used to carry not more than six passengers including the driver, in respect of which a permit has been issued under this Chapter shall, so far as it purport to restrict the liability of any person, or to absolve any person from his liability, in respect of any claim made against that person in respect of the death of, or injury to, the passenger who is being carried in, entering or alighting from the vehicle or purports to impose any conditions with respect to the enforcement of any such liability, be void].

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| | 1[67—A (1)—Government may, by notification in the official Gazette, |

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| Claims Tribunal | constitute a Claims Tribunal for such area or areas as may be specified in the notification, for the purpose of adjudicating upon claims for compensation under section 67. |

(2) A claims Tribunal shall consist of one or more members as Government may deem fit to appoint, and where it consists of two or more members, one of them shall be appointed as the Chairman thereof.

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| Application for compensation | 67—B. (1) An application for compensation under section 67 may be made — |

1. by the person who has sustained the injury; or
2. where death has resulted, by the legal representatives of the , deceased passenger; or.

1. Section 67 (A), 67 (B),67 (C), 67 (D), 67 (E), 67 (F), 67 (G), ins. by W. P. Ord No. IX of 1970, s. 14(3).

(c) by an agent duly authorised by the person injured or the legal representatives of the deceased passenger as the case may be.

1. Every application under sub-section (1) shall be made to the Claims Tribunal having jurisdiction over the area in which the accident resulting in the death or injury, as the case may be, of the passenger and shall be in such form and shall contain such particulars as may be prescribed.
2. No application for compensation under this section shall be entertained unless it is made within ninety days of the accident:

Provided that the Claims Tribunal may entertain an application after the expiry of the said ninety days if it is satisfied that the applicant was prevented by sufficient cause from making the application in time.

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| 67-C. On receipt of an application for compensation made under section 67-B, the Claims Tribunal shall hold an inquiry into the claim, giving an opportunity to the parties of being heard, and pass an order determining, in accordance with the provisions of section 67, the amount of compensation payable, and specifying the person or persons to whom the compensation shall be paid. | Award of compensation |
| 67-D. (1) In the holding of an inquiry under section 67-C, the Claims Tribunal shall, subject to any rules that may be made in this behalf by | Procedure and powers of |

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| Government, follow such summary procedure as it thinks fit. | claims tribunal |

(2) The Claims Tribunal shall be deemed to be a civil Court for all the purposes of section 195 and Chapter XXXV of the Code of Criminal Procedure, 1898 (Act V of 1898).

(3) The Claims Tribunal shall have all the powers of a Civil Court—

1. for the purposes of taking evidence on oath, enforcing the attendance of witnesses and compelling the discovery and production of documents and material objects; and.
2. for such other purposes as may be prescribed.

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| Appeal | 67—E. (1) Subject to the provisions of sub-section (2), any person aggrieved by an order of the Claims tribunal, awarding or refusing to award compensation, may within ninety days from the date of the order, prefer an appeal to the prescribed authority. |

(2) No appeal shall lie under sub-section(l) if the amount in dispute in appeal does not exceed rupees one thousand.

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| Recovery of amount of compensation | 67-F. (1) Where any compensation has been awarded by the Claims Tribunal or the prescribed authority and the same has not been paid to the person to whom it has been awarded within seven days of the order awarding the compensation— |

1. if the compensation is payable by a person who has furnished a bank guarantee under section 49, the bank giving the guarantee shall on being required by the Tribunal deposit with the Tribunal the amount of compensation, or so much thereof as can be paid out of the amount secured under the guarantee; provided that any amount of compensation which cannot be so recovered shall be recoverable in the manner provided in clause (b).
2. if the compensation is payable by a person who has not furnished a bank guarantee under section 49, the Claims Tribunal or prescribed authority awarding the compensation may on the application of the person entitled to receive the compensation, issue a certificate to the Collector, and the Collector shall, thereupon proceed to recover the amount specified in the certificate in the same manner as an arrear of land-revenue.

2. Where any compensation has been paid under the provision of clause (a) of sub-section(l) out of any amount secured under section 49 in respect of a stage carriage, the permit in respect of such stage carriage shall stand suspended untill the permit holder furnishes to the Regional Transport Authority which issued the permit, a fresh bank guarantee of the prescribed sum under the provisions of section 49.

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| | 67-G. No Civil Court shall have jurisdiction to entertain any question |

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| Bar of Jurisdiction | relating to any claim-for compensation which may be adjudicated upon by a Claims Tribunal, and no injunction in respect |

of any action taken or to be taken by or before a Claims Tribunal in respect of any claim for compensation shall be grant ed by a civil Court].

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| 68. (1) Government may make rules in respect of stage carriages and contract carriages—<br>1. to provide for the licensing of persons acting as conductors of such carriages;<br>2. to regulate the conduct of persons licensed to act as drivers of, and the conduct and duties of conductors of such vehicles, when acting as such; and | Power to make rules to stage carriages and contract carriages. |

1. to regulate the conduct of passengers in such vehicles.

2. Without prejudice to the generality of the foregoing provisions, such rules may—

1. authorise the removal from such vehicle by the driver or conductor, or on the request of the driver or conductor, or any passenger by any police officer, of any person infringing the rules;
2. require a passenger who is reasonably suspected by the driver or conductor of contravening the rules to give his name and address to a police officer or to the driver or conductor on demand;
3. require a passenger to declare, if so requested by the drive or conductor, the journey he intends to take or has taken in the vehicle and to pay the fare for the whole of such journey and to accept any ticket provided therefor;
4. require, on demand being made for the purpose by driver or conductor or other persons authorised by the owner of the vehicle production during the journey and surrender at the end of the journey by the holder there of any ticket issued to him;
5. require a passenger, if so requested by the driver or conductor, to leave the vehicles on the completion of the journey for which he has paid the fare;

(f) equire the surrender by the holder thereof on the expiry of the period of journey for which it is issued, of a ticket issued to him;
(g) require the maintenance of complaint books in stage carriages and prescribe the conditions under which passengers may record any complaints in the same.

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| Power to make rules for the purpose of this chapter. | 69. (1) Government may make rules for the purposes of carrying into effect the provisions of this Chapter.<br>(2) without prejudice to the generality of the foregoing power, rules under this section may be made with respect to all or any of the following matters, namely:—" |

(i) the period of appointment and the terms of appointment of and the conduct of business by Regional and Provincial Transport Authorities 1[the delegation of powers by them to their respective Chairmen or any Members] and the reports to be furnished by them;
(ii) the conduct and hearing of appeals that may be preferred under this Chapter, the fees to be paid in respect of such appeals and the refund of such fees;
(iii) the forms to be used for the purposes of this Chapter, including the forms of permit;
(iv) the issue of copies of permits in place of permits mutilated, defaced, lost or destroyed;
(v) the documents, plates and marks to be carried by transport vehicles, the manner in which they are to be carried and the languages in which any such documents are to be expressed;
(vi) the badges and uniform to be worn by drivers and conductors of stage carriages and contract carriages;
(vii) the fees to be paid in respect of permits, duplicate permits, plates and badges;
(viii) the exemption of prescribed persons or classes of persons from payment of all or any portion of the fees, payable under this Chapter.
(ix) the custody, production and cancellation on expiration, of permits, and the return of permits which have become void or have been cancelled;

1 In, section 69, in sub-section (2). In clause (i), after the word "authorities', the word "the delegation of powers by them to their respective Chairman or any Member"," inserted by W. P. Ord. No. IX of 1970. s. 15.

(x) the conditions subject to which a permit issued in one region shall be valid in another region;
(xi) the authorities to whom, the time within which and the manner in which appeals maybe preferred;
(xii) the construction and fittings of, and the equipment to be carried in by, stage and contract carriages, whether generally or in specified areas.
(xiii) the determination of the number of passengers a stage or contract carriage is adapted to carry and the number of passengers which may be cabled;
(xiv) the conditions subject to which goods may be carried on stage and contract carriages partly or wholly in lieu of passengers;
(xv) the safe custody and disposal of property left in a stage or contract carriage;
(xvi) regulating the painting or marking of transport vehicles and the display of advertising matter thereon, and in particular prohibiting "the painting or marking of transport vehicles in such colour or manner as to induce any person to believe that the vehicle is used for the transport of mails;

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(xvii) the conveyance in stage or contract carriages of corpses or persons suffering from any infectious contagious disease or goods likely to cause discomfort or injury to passengers, and the inspection and disinfection of such carriages, if used for such purposes;
(xviii) the provision of fitting taxi-meters of approved standard type on motor cabs and the examining, testing and sealing of taxi meters.
(xix) prohibiting the picking up or setting down of passengers by stage or contract carriages at specified places or in specified areas or at places other than duly notified stands or halting places, and requiring the driver of a stage carriage to stop and remain stationary for a reasonable time when so required by a passenger desiring to board or alight from the vehicle at a notified halting place;

(xx) the requirements which shall be complied with in the construction or use of any duly notified stand or halting place, including the provision or adequate facilities for the convenience of the users thereof, the fees, if any, which may be charged for the use of such stands or places, the staff to be employed then at and the duties and conduct of such staff, and generally for maintaining such stands and places in a serviceable and clean condition;
(xxi) the regulation of motor cab ranks;
(xxii) requiring the owners of transport vehicles to notify any change of address or to report the failure of or damage to any vehicle used for the conveyance of passengers for hire or reward;
(xxiii) authorising specified persons to enter at all reasonable times and inspect all premises used by permit holders for the purposes of their business
(xxiv) requiring a person in charge of a stage carriage to carry any person tendering the legal or customary fare;
(xxv) the conditions under which, the types of containers or vehicles in which and the seasons during which animals or birds may or may not be carried;
(xxvi) the licensing of and the regulation of the conduct of agents or canvassers who engage in the sale of tickets for travel by public service vehicles or otherwise solicit business for such vehicles;
(xxvii) the licensing of and the regulation of the activities of agents in the business of collecting, forwarding and distributing of goods carried by transport vehicles; (xxviii) the inspection of transport vehicles and their contents and of the permits relating to them;
(xxix) the carriage of persons other than the driver in goods vehicles;
(xxx) the records to be maintained and the return to be furnished by the owners of transport vehicles; 1[. . . . ].
2(xxxi) the classification of routes for the purposes of issuing of stage carriage permits;
(xxxii) the form in which application should be made for grant of permits;

1. The word "and" deleted by W. P. Ord. No. IX of 1970.
2. Clause XXXI renumbered as clause XXXIV and clauses (XXXI) to (XXXIII) add. by

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(xxxiii) the amount of security which should be made for grant of stage carriage and contract permits; and.]
1[(xxxiv)] any other matter which is to be or may be prescribed.

## CHAPTER—V
## 2[N.-W.F.P. ROAD TRANSPORT BOARD]

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| 70. (1) Government may establish a 2[N.-W.F.P. Road Transport Board] for the purpose of operating road transport service in the Province and the 2[N.-W.F.P. Road Transport Board so established shall be a body corporate by the name of the 2[N.W.F.P. Road Transport Board] having perpetual succession and a common seal, and shall by that name sue and be sued. | 2[N.W.F.P Road Transport Board] |

3[(2) The Board shall consist of a Chairman and such number of members as may from time to time be appointed by Government.]

(3) The term of office, of the Chairman or a member shall be three years;

Provided that where the Chairman or member is a person in the service of Pakistan, his term of office shall be such as may be determined by Government.

(4) On the expiry of the term of his office, the Chairman or a member shall be eligible for re-appointment for another term or for such shorter term as Government may determine.

1. The Chairman or any member may at any time resign his office; provided that his resignation shall not take effect until it is accepted by Government.
2. The Chairman or each member shall receive such salary and allowances as may be determined by Government and shall perform such duties as may be assigned to them under this Ordinance or the rules framed thereunder.

(7) Government may, by notification in the official Gazette remove the Chairman or any member—
(i) if he refuses or fails to discharge or becomes in the opinion of Government incapable of discharging his responsibilities under this Ordinance; or

1. Re humbered as sub section XXXIV by W. P. Ord. No. IX of 1970.

1. Subs, for the word "Road Transport Board" by N.W. F.P. Ord. No. V of 1972, s. 3.
2. Subs ...ibid.

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(ii) if he has been declared insolvent; or
(iii) if he has been declared to be disqualified for employment in, or has been dismissed from the service under the 1[Federal] Government or the Provincial Government or has been convicted of an offence involving moral turpitude; or
(iv) if he has knowingly acquired or continues to hold, without the permission in writing of Government, directly or indirectly or through a partner any share or interest in any contract or employment with or by or on behalf of the 2[Board] or in any land or property which to his knowledge is likely to benefit or has benefited as a result of the operations of the 2[Board].

3[(7a) A person employed for the purposes of an organization established under sub-section (1) shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860)].

(8) Government shall consult the 2[Board] in all matters relating to the co-ordination of road and rail transport and in the fixation of areas and freights under Chapter IV.

(9) Government may make rules not inconsistent with the provisions of this Ordinance, prescribing the powers and functions of the 2[Board].

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| Transport authorities to have no jurisdiction in respect of motor transport operated by the 2[Board] | 71. (1) The 2[Board] may operate motor transport on any route it may think fit, and where it so operates such transport, the Provincial Transport Authority and a Regional Transport Authority shall, notwithstanding anything in this Ordinance, have no jurisdiction in relation to that transport.<br>(2) The Provincial Transport Authority or the Regional Tran-port Authorities shall not grant or issue stage carriage permits on new route or routes wholly lying within an urban area to be notified in this behalf by Government, unless an offer has first been made to the 2[Board] to operate its services on such route or routes and the 2[Board] has declined to operate its services on such route or routes; |

Provided that if the 2[Boards fails to operate its services on such route or routes within three months of the date on which the offer of the Provincial Transport Authority or the Regional Transport

1. Subs, by P. O. of 1975.
2. For the word "Corporation" subs by N.W.F.P. Ord. V of 1972.
3. Added by Ord. No. VIII of 1978.

Authorities, as the case may be, was communicated to it, it shall be presumed that the 1[Board] has declined to operate its services on such route or routes.

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| 72. (1) The 1[Board] shall have power to acquire any property, movable or immovable, used in, or for or ancillary to the operation of any motor transport conducted under this chapter.<br>(2) Such acquisition may be made by serving a notice of acquisition on the owner of the property, or if such owner is not readily traceable or the ownership is in dispute, by a notice of acquisition published in the official Gazette and shall take effect from the beginning or the day on which the notice is served or published. | Power of the 2[N.W.F.P Road Transport Board] to acquire Property for motor transport operated by it. |

(3). For any property so acquired there shall be paid compensation equivalent to the market value of the property acquired to be-calculated in such manner as Government may prescribe.

(4) If any dispute arises as to the amount of compensation payable under sub-section (3), it shall be referred to the arbitration of a person who is or has been a High Court Judge and his award shall be final and binding on the parties and shall not be called in question in any Court of law nor shall anything in the Arbitration Act, 1940, apply to such an arbitration.

**CHAPTER—VI**

# CONSTRUCTION, EQUIPMENT AND MAINTENANCE OF

## MOTOR VEHICLES.

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| 73. Every motor vehicle shall be so constructed and so maintained as to be at all times under the effective control of the persons driving the vehicles. | General provision regarding construction and maintenance. |
| 74. (1) Government may make rules regulating the construction, equipment and maintenance of motor vehicles and trailers. | Power to make rules. |

(2) Without prejudice to the generality of the foregoing power, Government may make rules governing any of the following matters either generally in respect of motor vehicles or trailers or motor vehicles or trailers of a particular class or in particular circumstances, namely:—

1. the width, hight, length and overhang of vehicle and of the load to be carried therein;
2. Seating arrangement in public service vehicles and the protection of passengers against the weather;

1. For the words "Corporation' sub by N.W.F.P. Ord. No. V of 19/2.
2. Subs, by N.W.F P. Or . No. Vol 1974.

1. the size, nature and condition of tyres;
2. brakes and steering gear;
3. the use of safety glass;

(f) signalling appliances, lamps and reflectors;
(g) speed governors;
(h) the emission of smoke, visible vapour, sparks ashes; grit or oil ;
(i) the reduction of noise emitted by or caused by vehicles;
(j) Prohibiting or restricting the use of audible signals at certain times or in certain places;
(k) prohibiting the carrying of appliance likely to cause annoyance or danger;
(l) the periodical testing and inspection of vehicles by prescribed authorities;
(m) the particulars, other than registration marks, to be exhibited by vehicles and the manner in which they shall be exhibited;
(n) the use of trailers or semi-trailers with motor vehicles; and
(o) prohibiting or requiring the painting in particular colours of motor vehicles of particular description or for particular purposes or in particular area.

**CHAPTER VII**
**CONTROL OF TRAFFIC**

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| Limits of speed | 75. (1) No person shall drive a motor vehicle or cause or allow a motor vehicle to be driven in any public place at a speed exceeding the maximum speed fixed for the vehicle by or under this Ordinance or by or under any other law for the time being in force; |

Provided that such maximum speed shall in no case exceed the maximum fixed for the vehicle in the Fight Schedule.

(2) Government or any authority authorised in this behalf by Government may, if satisfied that it is necessary to restrict the speed of motor vehicles in the interest of public safety or convenience or because of the nature of any road or bridge, by notification in the official Gazette, fix such maximum speed limits as it thinks fit for motor vehicles or any specified class of motor vehicles or for motor vehicles to which a trailer is attached either generally or in a particular area or on a particular road or roads, and where any such restrictions are imposed, cause appropriate traffic signs to be placed or erected under section 79 at suitable places in such area or on or near such road or bridge, as the case may be.

(3) Nothing in this section shall apply to any vehicle registered under section 40 while it is being used in the execution of military manoeuvres within the are a and during

the period specified in a notification under sub-section (1) of section 2 of the Manoeuvres, Field Firing and Artillery Practice Act, 1938.

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| 76. (1) Government may prescribe conditions for the issue of permits for heavy transport vehicles by the Provincial or Regional Transport Authorities and may prohibit or restrict the use of such vehicles in any area or route within the Province. | Limit of weight and limitation |

(2) Except as may be otherwise prescribed, no person shall drive or cause or allow to be driven in any public place any motor vehicle which is not fitted with pneumatic tyres.

(3) No person shall drive or cause or allow to be driven in any public place any motor vehicle or trailer—

(a) the unladen weight of which exceeds the unladen weight specified in the certificate of registration of the vehicle; or

1. the laden weight of which exceeds the registered ladan weight specified in the certificate of registration; or
2. any axle weight which exceeds the maximum axle weight specified for the axle in the certificate of registration.

(4) Where the driver or person in charge of a motor vehicle or trailer driven in contravention of sub-section (2) or sub-section (3) is not the owner, a Court may presume that the offence was committed with the knowledge of or under the orders of the owner of the motor vehicle or trailer.

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| 77. Any person authorised in this behalf by Government may, if he has reason to believe that a goods vehicle or trailer is being used in contravention of section 76, require the driver to convey | Power to have vehicle weighed. |

the vehicle to a weighing device, if any, within a distance of one mile from any point on the forward route or within a distance of five miles from the destination of the vehicle for weighment; and if on such weighment the vehicle is found to contravene in any respect the provisions of section 76 regarding weight, he may, by order in writing, direct the driver to convey the vehicle or trailer to the nearest place to be specified in the order, where facilities exist for the storage of goods, and not to remove the vehicle or trailer from that place until the laden weight or axle weight has been reduced or the vehicles has otherwise been treated so that it complies with the provisions of the last preceding section.

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| Power to | 78. Government or any authority authorised in this behalf by Government, if satisfied that it is necessary in the interest of public safety |

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| restrict the use of vehicles. | or convenience, or because of the nature of any road or bridge may by notification in the official Gazette prohibit or restrict, subject to such exceptions and conditions as may be specified in the notification, the driving of motor vehicles or of any specified class of motor vehicles or the use of trailers either generally in a specified area or on a specified road, or bridge, and when any such prohibition or restriction is imposed, shall cause appropriate traffic signs to be placed or erected under section 79 at suitable places in such area or on or near such road or bridge, as the case may be: |

Provided that where any prohibition or restriction under this section is to remain in force for a period of not more than one month, notification thereof shall not be necessary.

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| Power to erect traffic sign. | 79. (1) Government or any authority authorised in this behalf by Government may cause or permit traffic signs to be placed or erected in any public place for the purpose of regulating motor vehicle traffic. |

(2) Traffic signs erected under this Chapter for any purpose for which provision is made in the Ninth Schedule shall be of the size, colour and type and shall have the meaning set forth in the Ninth Schedule, but Government or any authority empowered in this behalf by Government may make or authorise the addition to any sign set forth in the said Schedule of transcription of the words, letters or figures there on in such script as Government may think fit: Provided that the transcription shall be of similar size and colour to the words, letters or figures set forth in the Ninth Schedule.

(3) Except as provided by this Chapter, no traffic sign shall, after the commencement of this Ordinance, be placed or erected on or near any road; but all traffic signs erected prior to the commencement of this Ordinance by any competent authority shall for the purposes of this Ordinance be deemed to be traffic signs erected under the provisions of this Chapter.

(4) Government or any authority authorised under sub-section (1) may remove or cause to be removed any sign or advertisement which, in its opinion, is so placed as to obscure any traffic sign from view or any sign or advertisement which is, in its opinion so similar in appearance to a traffic sign as to be misleading.

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| 80. Government or any authority authorised in this behalf by Government may, in consultation with the local authority having jurisdiction in the area concerned, determine places at which motor vehicles may stands either indefinitely or for a specified period of time, and may determine the places at which, public service vehicles may stop for a longer time than is necessary for taking up and setting down of | Parking places and halting station |

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| passengers. | |
| 81. Government or any authority authorised by it in this behalf may, by notification in the official Gazette or by the erection at suitable places of the appropriate traffic sings referred to in 1[Part-Ill] of the Ninth Schedule, designate certain roads as main roads for the purposes of the regulations contained in the Tenth Schedule. | Main roads. |
| 82. (1) Every driver of a motor vehicles shall drive the vehicle in conformity with any indication give n by a mandatory traffic sign and in conformity with the driving regulations set forth in the Tenth Schedule, and shall comply with all directions given by any electrical traffic signalling device or by any police officer engaged in the regulation of traffic in any public place. | Duty to obey traffic signs. |

(2) In this section "mandatory traffic sign' 'means traffic sign included in 1[Part-III] of the Ninth Schedule, of any traffic sign of similar form (that is to say, consisting of or including a circular dise displaying a device, word or figure, and having a red ground or border) erected for the purpose of regulating motor vehicle traffic under sub-section (1) of section 79.

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| 83. The driver of a motor vehicle shall on the occasions specified in the Eleventh Schedule make the signal specified therein: | Signals and signaling devices. |

Provided that the signals of an intention to turn to the right of left or to stop may be given by a mechanical or an electrical device of a prescribed nature affixed to the vehicle.

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| 84. No person shall drive or cause or allow to be driven in any public place any motor vehicle with a left hand steering control unless it is equipped with a mechanical or electrical signalling device of a prescribed nature and in working order. | Vehicles with left hand control. |

1. In section 81 and in 82 clause (2) subs. "Part A" by Ord. No. XXIV of 1979.

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| Leaving vehicle in dangerous position | 85. No person in charge of a motor vehicle shall cause or allow the vehicle or any trailer to remain at rest on any road in such a position or in such a condition or in such circumstances as to cause or be likely to cause danger, obstruction or undue inconvenience to other users of the road. |
| Riding on running boards. | 86. No person driving or in charge of a motor vehicle shall carry any person or permit any person to be carried on the running board or other wise than within the body of the vehicle: |

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Provided that Government may, by notification in the official Gazette, permit, in such areas as may be specified in the notification the Civil Armed Forces, the Frontier Constabulary, the West Pakistan Rangers and the Armed Police to have an armed picket on the running board of a motor vehicle or otherwise than within the body of the vehicle.

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| Obstruction of driver | 87. No person driving a motor vehicle shall allow any person to stand or sit or anything to be placed in such manner or position as to hamper the driver in his control of the vehicle. |
| Stationary vehicles | 88. No person driving or in charge of a motor vehicle shall cause or allow the vehicle to remain stationary in any public place, unless there is in the driver's seat a person duly licensed to drive the vehicle or unless the mechanism has been stopped and a brake or brakes applied or such other measures taken to ensure that the vehicle cannot accidentally be put in motion in the absence of the driver. |
| Pillion riding. | 89. No driver of a two wheeled motor cycle shall carry more than one person in addition to himself on the cycle and no such person shall be carried otherwise than sitting on a proper seat securely fixed to the cycle behind the driver's seat. |
| Rider to wear helmet. | 1[89. (A)—No person shall drive, or ride the pillion seat of, a two-wheeled motor vehicle except when he is wearing a crash helmet. |
| | Explanation.— In this section, "crash helmet" means a helmet made of such material and meeting such other requirements as may be prescribed]. |
| Duty to produce license and certificate of registration | 90. (1) The driver of a motor vehicle in any public place, shall on demand by any police officer in uniform or any officer of the Transport Department not below the rank of Sub-Inspector, on production if so required of his authority, produce his licence and the certificate of registration of the vehicle and where, the vehicle is a |

1. Section 89 A added by Ord. No. VIII of 1978, s. 13.

transport vehicle, the certificate of fitness and the permit of the vehicle referred to in section 39 and 44, respectively for examination.

(2) The owner of a motor vehicle, or in his absence the driver or other person in charge of the vehicle, shall, on demand by a registering authority or any person authorised in this behalf by Government, produce the certificate of registration of the vehicle and, where the vehicle is a transport vehicle, the certificate of fitness refined to in section 39.

(3) If the licence or certificates, as the case may be, are not at the time in the possession of the person to whom demand is made, it shall be a sufficient compliance with this section if such person produces the licence or certificates within ten days at any police station in the Province which he specifies to the officer or authority making the demand:

Provided that, except to such extent and with such modification as may be prescribed, the provisions of this sub-section shall not apply to a driver driving as a paid employee, or to the driver of a transport vehicle or to any person required to produce the certificate of registration or the certificate of fitness of a transport vehicle.

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| 91. (1) The driver of a transport vehicle who desires to pass over a Railway level crossing shall cause the vehicle to stop before the crossing and shall not attempt to pass over the crossing unless the conduct or of the vehicle, or where the vehicle has no conductor, a person authorised in this behalf by the owner of the vehicle in writing other than the driver of the vehicle, walks before the vehicle until it has cleared the railway lines. | Railway crossing |

(2) The name and particulars of the person authorised by the owner under sub-section (1) shall be reported by the owner to the Registration Authority.

(3) A person shall not be deemed to have been authorised by the owner of the vehicle for the purposes of sub-section (1) unless he has in his possession at the time of performing the act required to be done under that sub-section the written authority of the owner in this behalf.

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| 92. (1) The driver of a motor vehicle shall cause the vehicle to stop and remain stationary so long as may reasonably be necessary,<br>(a) when required to do so by any police officer in uniform; or | Duty of driver to stop in certain cases. |

1. when required to do so by any person in charge of an animal if such person apprehends that the animal is, or being alarmed by the vehicle, will become unmanageable; or.
2. when the vehicle is involved in the occurrence of an accident to a person, animal or vehicle or of damage to any property, whether the driving or management of the vehicle was or was not the cause of the accident or damage,

and he shall give his name and address and the name and address of the owner of the vehicle to any person affected by any such accident or damage who demands it provided such person also furnishes his name and address.

1. The driver of a motor vehicle shall, on demand by a person giving his own name and address and alleging that the driver has committed an offence punishable under section 99, give his name and address to that person.
2. In this section the expression "animal'* means any horse, cattle, elephant, camel, ass, mule, sheep or goat.

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| Duty of owner of motor | 93. The owner of a motor vehicle the driver of which is accused of any offence under this Ordinance shall, on the demand of any police |

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| vehicle to give information. | officer or an officer of the Transport Department authorised in this behalf by Government, give all information regarding the name and address of and the licence held by the driver which is in his possession or could by the exercise of due diligence be ascertained by him. |
| Duty of driver in case of accident and injury to a person animal or damage to property. | 94. When any accident occurs, in which a motor vehicle is involved, the driver of the vehicle or other person in charge of the vehicle shall— (a) if any person is injured as a result of such accident take all reasonable steps to secure medical* attention for the person so injured, and, if necessary, convey him to the nearest hospital, unless the injured person or his guardian, in case he is a minor, desires otherwise; |

1. if any animal is injured as a result of such accident, take steps and endeavour to locate and report the matter to the owner, or custodian of the animal so injured and take all reasonable steps to secure medical attention, if necessary, for the animal;
2. if any damage has been caused to any property as a result of such accident, take reasonable steps to report the damage to the party sustaining the damage; and

(d) give on demand by a police officer or an officer of the Transport Department authorised in this behalf by Government any information required by such officer relating to the occurrence, or, if no such officer is present, report the circumstances of occurrence at the nearest police station as soon as possible and in any case within twenty-four hours of the occurrence.

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| 95. When any accident occurs in which a motor vehicle is involved, any person authorised in this behalf by Government may on production if so required of his authority, inspect the vehicle and for that purpose may enter at any reasonable time any premises where the vehicle may be, and may remove the vehicle for examination: | Inspection of vehicle involved in accident. |

Provided that the place to which the vehicle is so removed shall be intimated to the owner of the vehicle and the vehicle shall be returned without unnecssary delay, and in no case later than Forty eight hours of its removal.

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| 96. (1) Government may make rules for the purpose of carrying into effect the provisions of this Chapter. | Power to make rules. |

(2) Without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :—

(a) the nature of the mechanical or electrical signalling devices which may be used on motor vehicles;

1. the erection of electrical traffic signalling devices, and the types of such devices that may be installed;
2. the removal and the safe custody of vehicles, including their loads, which have broken down or which have been left standing or have been abandoned on roads;
3. the installation and use of weighing devices;
4. the exemption from all or any of the provisions of this Chapter of emergency vehicles and other special classes of vehicles, subject to such conditions as may be prescribed;

(f) the maintenance and management of parking places and stands and the fees, if any, which may be charged for their use;
(g) prohibiting the driving down hill of a motor vehicle with the gear disengaged, either generally or in specified place;

(h) prohibiting the taking hold of or mounting of a motor vehicle in motion;
(i) prohibiting the use of foot paths or pavements by motor vehicles;
(j) generally, the prevention of danger, injury or annoyance to the public or any person, or of danger or injury to property or of obstruction to traffic.

**CHAPTER VIII**
**OFFENCES, PENALTIES AND PROCEDURE**

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| Offences relating to licenses | 97. Whoever, being disqualified under this Ordinance for holding or obtaining a licence, drives a motor vehicle in a public place or applies for or obtains a licence or, not being entitled to have a licence issued to him free of endorsement, applies for or obtains a licence without disclosing the endorsements made on a licence previously held by him, or being disqualified under this Ordinance for holding or obtaining a licence, uses a licence such as is referred to in sub-section (2) of section 10, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both, and any licence so obtained by him shall be of no effect; and if the vehicle so driven is a transport vehicle or, the licence so applied for, obtained or used is a licence to drive a transport vehicle, shall be punished with imprisonment which may extend to two years and with fine which may extend to rupees one thousand, and any licence so obtained by him shall be of no effect. |
| Driving at excessive speed. | 98. (1) Whoever drives a motor vehicle in contravention of section 75 shall be punished with fine which may extend to one hundred rupees, and when the vehicle is a transport vehicle, with a fine which shall not be less than one hundred rupees and which may extend to five hundred rupees. |

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(2) Whoever causes any person who is employed by him or is subject to his control to drive a motor vehicle in contravention of section 75 shall be punished with fine which may extend to two hundred rupees, and when the vehicles is a transport vehicle, with a fine which may extend to five hundred rupees.

(3) No person shall be convicted of an offence punishable under sub-section (1) solely on the evidence of one witness to the effect that in the opinion of the witness such person was driving at a speed, which was unlawful, unless that opinion is shown to be based on an estimate obtained by the use of some mechanical device.

(4) The publication of a time table under which, or the giving of any direction that any journey or part of a journey is to be completed within a specified time shall if in the opinion of the Court it is not practicable in the circumstances of the case for the journey or part of a journey to be completed in the specified time without infringing the provisions of section 75, be prima facie evidence that the person who published the time table or gave the direction has committed an offence punishable under sub-section (2).

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| 99. (1) Whoever drives a motor vehicle at a speed or in a manner which is dangerous to human life or property having regard to all the circumstances of the case, including the nature, condition and use of the place where the vehicle is driven and the amount of traffic which actually is at the time or which might reasonably be expected to be in the place, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five hundred rupees, and if the vehicle be a transport vehicle, with imprisonment which may extend to one year and with a fine which may extend to one thousand rupees. | Driving recklessly or dangerously. |

(2) Whoever, having been previously convicted of an offence specified in sub-section(1) shall, within three years of such conviction be guilty of an offence punishable under that sub-section shall be subject for every such subsequent offence to imprisonment of either description for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both, and where the vehicle is a transport vehicle, with imprisonment which may extend to four years and with fine which may extend to one thousand rupees

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| 100. Whoever while driving or attempting to drive a motor vehicle is under the influence of drink or a drug to such an extent as to be incapable of exercising of proper control over the vehicle shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, and if having been previously convicted of such an offence, shall again be guilty of an | Driving while under the influence of drink or drugs. |

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| offence punishable under this section, shall be subject for every such subsequent offence to imprisonment of either description for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both. | |
| 101. Whoever drives a motor vehicle in any public place when he is to his knowledge suffering from any disease or disability calculated to cause his driving of the vehicle to be a source of danger to the public, shall be punished with fine which may extend to two hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence | Driving when mentally or physically unfit to drive. |

punishable under this section, shall be subject for every such subsequent offence to fine which may extend to five hundred rupees.

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| Punishment for abetment of certain offences. | 102. Whoever abets the commission of an offence under section 99, 100 or 101, shall be punishable with the punishment provided for the offence. |
| Racing and trials of speed. | 103. Whoever, without the written consent of Government, permits or takes part in a race or trial of speed between motor vehicles in any public place shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both. |
| Using vehicle in unsafe condition. | 104. Any person who drives or causes or allows to be driven in any public place a motor vehicle or trailer while the vehicle or trailer has any defect, which such person knows of or could have discovered by the exercise of ordinary care and which is calculated to render the driving of the vehicle a source of danger to persons and vehicles using such place, shall be punished with imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both, or if as a result of such defect an accident causing bodily injury to any person or animal or damage to property takes place, with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both. |
| Sale of vehicle in or alteration of vehicle to a condition contravening this Ordinance. | 105. Whoever, being an importer of or dealer in motor vehicles, sells or delivers or offers to sell or deliver a motor vehicle or trailer in such condition that the use thereof in a public place would be in contravention of Chapter VI or any rule made thereunder Or alters the motor vehicle or trailer so as to render its condition such that its use in a public place would be in contravention of Chapter VI or any rule made thereunder shall be punished with fine which may extend to two hundred rupees. |

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Provided that no person shall be convicted under this section if he proves that he had reasonable cause to believe that the vehicle would not be used in a public place until it had been put into a condition in which it might lawfully be so used.

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| Using vehicle with out permit. | 106. Whoever drives a motor vehicle or causes or allows a motor vehicle to be used or lets out a motor vehicle for use in contravention of the provisions of sub-section (1) of section 44 shall be punished with imprisonment for a term which may extend to six months or with fine which may extend to five hundred rupees, and if having been previously convicted of such an offence shall again be guilty of an offence punishable under this section, shall be subject for every such subsequent offence to imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both. |

(2) Nothing in this section shall apply to the use of a motor vehicle in an emergency for the conveyance of persons suffering from sickness or injury or for the transport of materials for repair or of food or materials to relieve distress or of medical supplies for a like purpose; provided that the person using the vehicle reports such use to the Regional Transport Authority within seven days.

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| 107. Whoever drives a motor vehicle or causes or allows a motor vehicle to be driven in contravention of the provisions of section 76 or of the conditions of any permit issued thereunder, or in contravention of any prohibition or restriction imposed under section 78 shall be punished with fine which may extend to one hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence under this section, shall be subject for every such subsequent offence to fine which may extend to five hundred rupees. | Driving vehicle exceeding permissible weight. |
| 108. Whoever contravenes the provisions of clause (c) of subsection (1) of section 92 or any of the provisions contained in section 94 or furnishes any information required to be furnished there under which he knows to be false shall be punishable with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both. | Penalty for failing to stop in case of accident or failure to furnish information, etc. |
| 109. Whoever takes and drives away any motor vehicle with out having either the consent of the owner thereof or other lawful authority shall be punished with imprisonment which may extend to three months, or with fine which may extend to five hundred rupees or with both; | Taking vehicle without authority. |

Provided that no accused person shall be convicted under this section if the Court is satisfied that the accused acted in the reasonable belief that he had lawful authority or

in the reasonable belief that the owner would in the circumstances of the case have given his consent if he had been asked to do so.

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| 110. Whoever otherwise than with lawful authority or reasonable excuse enters or mounts any stationary motor vehicle or tampers with the brake or any part of the mechanism of a motor vehicle shall be punished with imprisonment which may extend to one month or with fine which may extend to two hundred rupees, or with both. | Unauthorized interference with vehicle. |
| 111. Whoever willfully disobeys any direction lawfully given by any person or authority empowered under this Ordinance to give such direction, or obstructs any person or authority in the discharge of any functions which such person or authority is required or empowered under this ordinance to discharge, or, being required by or under this Ordinance to supply any information, withholds such | Disobedience of orders, obstruction and refusal of information. |

information or gives information which he knows to be false or which he does not believe to be true, shall, if no other penalty is provided for the offence, be punished with fine which may extend to two hundred rupees.

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| Penalty for contravention of rules relating to appliances. | 111-A. Whoever carries in any motor vehicle any appliance the carrying of which is prohibited by rules made under section 74 shall be punished with fine which may extend to five hundred rupees and such appliance shall be forfeited to Government.] |
| General provision for punishment of offences not otherwise provided for. | 112. Whoever contravenes any provision of this Ordinance or of any rules made thereunder shall, if no other penalty is provided for the offence under this Ordinance, be punished with fine which may extend to one hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence punishable under this section, shall be subject for every such subsequent offence to fine which may extend to five hundred rupees. |
| Power of arrest without warrant. | 113. (1) A police officer in uniform may arrest with out warrant any person who commits in his view an offence punishable under section 99 or section 100 or section 110: |

Provided that any person so arrested in connection with an offence punishable under section 100 shall be subjected to a medical examination by a registered medical practitioner within two hours of his arrest, and if not so subjected within the said period of two hours shall be released from custody.

(2) A police officer in uniform may arrest without warrant—

1. any person who being required under the provisions of this Ordinance to give his name and address refuses to do so or gives a name and address which the police officer has reason to believe to be false; or
2. any person concerned in an offence under this Ordinance or reasonably suspected to have been so concerned, if the police officer has reason to believe that he will abscond or other wise avoid the service of a summons.

(3) A police officer arresting without warrant the driver of a motor vehicle shall, if the circumstances so required, take or cause to be taken any steps he may consider proper for the temporary disposal and safe custody of the vehicle

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| Power of police officer to seize documents. | 114. (1) Any police officer authorised in this behalf or other person authorised in this behalf by Government may, if he has reason to believe that any identification mark carried on a motor |

1. Section 111 A added by Ord. No. VIII of 1978, s. 4.

vehicle or any licence, permit, certificate of registration, certificate of insurance or other document produced before him by the driver or person in charge of a motor vehicle is a false documents within the meaning of section 464 of the Pakistan Penal Code, seize the mark or document and call upon the driver or owner of the vehicle to account for his possession of or the presence in the vehicle of such mark or document.

(2) Any police officer authorised in this behalf by Government may, if he has reason to believe that the driver of a motor vehicle who is charged with any offence under this Ordinance may abscond or otherwise avoid the service of a summons, seize any licence held by such driver and forward it to the Court taking cognizance of the offence, and the said Court may, on the appearance of such driver before it and on such terms as to security as it may deem fit, return the licence to him, and require him to surrender any temporary acknowledgment given to him under sub-section (3).

(3) A police officer seizing a licence under sub-section (2) shall give to the person surrendering the licence a temporary acknowledgment thereof and such acknowledgment shall authorise the holder to drive any motor vehicle specified in his licence until the hence has been returned to him or up to a date which the police officer shall specially in the temporary acknowledgment whichever is earlier:

Provided that where for any cause in respect of which the holder of the licence is not at fault, he is unable to appear in the Court before the temporary acknowledgment ceases to be effective, any Magistrate or a police officer authorised by Government in this behalf may, on application made to him, substitute a later date in the temporary acknowledgment given under this sub-section.

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| 115. Any police officer authorised in this behalf or other person authorised in this behalf by Government may if be has reason to believe that a motor vehicle has been or is being used in contravention of the provisions of sub-section (1) of action 23 or without the permit required by sub-section (1) of section 44 or in contravention of any condition of such permit relating to the route on which | detain vehicle used without certificate of registration or permit. |
| 116. (1) A Court taking cognizance of an offence under this Ordinance shall, unless for reasons to be recorded in writing, the Court directs otherwise or when the offence is an offence specified in part A of the Fifth Schedule state upon the summons to the served on the accused person that he- | Summary disposal of cases. |

1. may appear by pleader and not in person, or
2. may by a specified date prior to the hearing of the charge plead guilty to the charge by registered letter and remit to the Court such sum not exceeding seventy-five rupees as the Court may specify.
3. Where the offence dealt with in accordance with sub-section (1) is an offence specified in Part B of the Fifth Schedule, the accused person shall, if he pleads guilty to the charge, forward his licence to the Court with the letter containing his plea in order that the conviction may be endorsed on the licence.
4. Where an accused person pleads guilty and remits the sum specified and has complied with the provisions of sub-section (2), no further proceedings in respect of the offence shall be taken against him, nor shall he be liable to be disqualified for holding or obtaining a licence by reason of his having pleaded guilty.

1[l 16—A(l)In any area to which Government have, by notification in the official Gazette, applied the provisions of this section, a Police Officer in uniform not below the rank of an Assistant Sub-Inspector of Police, may, notwithstanding any thing to the contrary contained in this Ordinance, or in any other law for the time being in force, charge on the spot any person committing within his view an offence, mentioned in the twelfth schedule in respect of a Scooter, motor cycle, motor rickshaw, private motor car or taxi.
(2) A police officer acting under sub-section (I) shall draw up a charge in triplicate, in 'Form J, as set forth in the first schedule, in the case of an offence relating to a Scooter, Motor-cycle, or Motor Rickshaw and in Form K, as set forth in the said schedule, in the case of an offence relating to a private motor-car or taxi, and shall-

1. forthwith deliver one copy thereof to the offender, who shall acknowledge its receipt under his signature or thumb-impression or mark, as the case may be;
2. within twenty four hours forward the second copy of the charge sheet to the court having jurisdiction to try the offence; and
3. retain the third copy for record.

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(3) A person charged with an offence under this section shall, within seven days of the delivery of the copy of the charge to him, deposit at any post office in 2[Province] or any branch of National Bank of Pakistan, or remit by money order to the court or Police Station, specified in the charge, an amount of rupees ten, if the

1. Section 116-A inserted by W. P. Ord. No. XXIT of T9S9, 9. 2-
2. Subs, by P.O. 4 of 1975 for "West Pakistan".-

offence relates to a scooter, motor-cycle or motor rickshaw and an amount of rupees twenty, if the offence relates to a private motor car or taxi, and send intimation, of such payment to the Police Station specified in the charge served upon him, and upon his doing so, no further proceeding shall be taken against him in respect of that offence.

(4) If the fine is not paid in the manner provided in subsection (3), the Police Officer drawing up the charge shall lay a complaint against the offender before the court having jurisdiction to try the offence.]

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| 117. No person prosecuted for an offence punishable under section 99 or section 100 shall be convicted unless— | Restriction on conviction. |

1. he was warned at the time the offence was committed that the question of prosecuting him would be taken in to consideration, or
2. within fourteen days from the commission of the offence, a notice specifying the nature of the offence and the time and place where it is alleged to have been committed, was served on or sent by registered post to him or the person registered as the owner of the vehicle at the time of the commission of the offence, or

(c) within twenty-eight days from the commission of the offence a summons for the offence was served on him:

Provided that nothing in this section shall apply where the Court is satisfied that-—

1. the failure to serve the notice or summons referred to in this sub-section was due to the fact that neither the name and address of the accused nor the name and address of the registered owner of the vehicle could with reasonable diligence have been ascertained in time, or
2. such failure was brought about by the conduct of the accused.

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| 118. No Court inferior to that of a Magistrate of the second class shall try any offence punishable under this Ordinance or any rules made there under | Jurisdiction of Courts. |

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## CHAPTER IX
## MISCELLANEOUS

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| 119. (1) Every power to make rules given by this Ordinance is subject to the condition of the rules being made after previous publication. | Publication of and commencement of rules. |

(2) All rules made

under this Ordinance shall be published in the official Gazette, and shall, unless some later date is appointed, come into force on the date of such publication.

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| Appointment of motor vehicles officers. | 120. (1) Government may, for the purpose of carrying into effect the provisions of this Ordinance establish a Motor Vehicles Department and a Transport Department and appoint as officers thereof such persons as it thinks fit. |

(2) Every such officer shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code.

(3) Government may make rules to regulate the discharge by officers of the Motor Vehicles Department and the Transport Department of their functions, and in particular and without prejudice to the generality of the foregoing power, to prescribe the uniform to be worn by them, the authorities to which they shall be subordinate, the duties to be performed by them, the powers to be exercised by them, and the conditions governing the exercise of such powers.

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| General provisions regarding appeals to prescribed appellate authorities. | 121. (1) An appeal under sub-section (3) of section 14, subsection (3) of section 16, sub-section (4) of section 17, sub-section (1) of section 36 or section 66 shall not operate as a stay of the order or proceedings under the order appealed from, except so far as the appellate authority may direct.<br>(2) In an appeal under this Ordinance, the order appealed from shall not be altered or reversed merely on account of any error, omission or irregularity, not materially affecting of the merits, in the procedure or order of the original authority. |
| Repeal and savings. | 122. (1) The enactments specified in the 1[Fourteen] Schedule are hereby repealed to the extent specified against each. |

(2) Notwithstanding the repeal of the enactments specified in the Twelfth Schedule, everything done, action taken, obligation, liability penalty or punishment incurred, inquiry or proceeding commenced, officer appointed or person authorised, jurisdiction or power conferred, licence, certificate or permit granted, rule made and order issued under any of the provisions of the said enactments shall if not inconsistent with the provisions of this Ordinance, continue in force and, so far as may be, be deemed

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to have been respectively done, taken incurred, commenced, appointed, authorised, conferred granted, made or issued under this ordinance.

1 In section 122, in sub-section (1), for the word "Twelfth", the word "Thirteenth", subs, by
W. P. Ord. No. XXII of 1969, 3. s. and then subs, by Ord. No. IX of 1970 for "Thirteenth".

# THE SCHEDULES

**THE FIRST SCHEDULE FORMS**
**FORM A**
**[(See SECTION 7 (2)]**
**FORM OF APPLICATION FOR LICENCE TO DRIVE A MOTOR VEHICLE**
**SECTION I**
**APPLICATION**

I apply for a licence to enable me to drive as a paid employee
*otherwise than as a paid employee vehicles of the following description:—

1. motor cycles,
2. motor cars,
3. invalid carriages,
4. motor cabs,
5. delivery vans,

(f) light transport vehicles public service vehicle,
(g) heavy transport vehicles public service vehicle,
(h) tractors,
(i) road-rollers,
(j) locomotives,
(k) a vehicle of a special type (description attached) constructed or adapted to be driven by me.
(*Strike out whichever inapplicable).

**First Schedule—contd.**
**FORM A—contd.**
**SECTION II**

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# PARTICULARS TO BE FURNISHED BY THE APPLICANT

1. Full name and name of father . . . . . .

   1. Permanent address . . . . . .
   2. Temporary address . . . . . .
   3. Age on the date of the application . . . . . .

1[4.a Identity Card number . . . . . .]
5. Particulars of any licence previously held by applicant

   1. Particulars and date of every conviction which has been ordered to be endorsed on any licence held by the applicant.
   2. Have you been disqualified for obtaining a licence to drive. If so, give date, testing authority and result of test.

1. Add by Ord: No. VIII of 1978. s. 15.

**THE FIRST-SCHEDULE FORM A**
**FORM A—contd**
**SECTION-III**

# DECLARATION AS TO PHYSICAL FITNESS OF APPLICANT

The applicant is required to answer "Yes" or "No" in the space provided opposite each question—
(a) Do you suffer from epilepsy, or from sudden attacks of disabling giddiness or fainting?
(b) Are you able to distinguish with each eye at a distance of twenty-five yards in good daylight (with glasses, if worn) a motor car number plate containing seven letters and figures?

1. Have you lost either hand or foot or are you suffering from any defect in movement, control or muscular power of either arm or leg?
2. Can you readily distinguish the pigmentary colours red and green:?
3. Do you suffer from night blindness?

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(f) Do you suffer from a defect of hearing?
(g) Do you suffer from any other disease or disability likely to cause your driving of a motor vehicle to be a source of danger to the public?

If so, give particulars.

I declare that to the best of my information and belief the particulars given in section II and the declaration made in section III hereof are true.

*Note:*— An applicant who answers "Yes" to questions (b) and (c) in the declaration and "No" to the other questions may claim to be subjected to a test as to his competency to drive vehicles of a specified type or types.

. . . . . .. . . . . .

*Signature or thumb impression of applicant.*

Dated . . .. . . . . 19. . .

**CERTIFICATE OF TEST OF ABILITY TO DRIVE**

The applicant has passed/failed in the test specified in the Third Schedule to the 1Provincial Motor Vehicles] Ordinance, 1965. The test was conducted on . . . . . at . . . . . on (date)

*Signature of Testing Authority.*

*Signature or thumb impression of applicants.*

(Here enter description of vehicle).

1. Subs for the words "West Pakistan", the word "Provincial", by P.O. 4 of 1975.

**THE FIRST SCHEDULE—contd**

**FORM B**

*[See section. 4(2), section 7(3) and section 15]*

**FORM OF MEDICAL CERTIFICATE IN RESPECT OF AN APPLICANT FOR A LICENCE TO DRIVE ANY TRANSPORT VEHICLE OR TO DRIVE ANY VEHICLE AS A PAID EMPLOYEE.**

(To be filled up by a registered medical practitioner).

1. What is the applicant's apparent age? _____
2. Is the applicant subject to epilepsy vertigo or any mental ailment likely to affect his efficiency? _____

3. Does the applicant suffer from any heart or lung disorder which might interfere with the performance of his duties as a driver? _____

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4. (a) Is there any defect of visions? If so, has it been corrected by suitable spectacles? _____

1. Can the applicant readily distinguish the pigmentary colours red and green? _____
2. Does the applicant suffer from night blindness? _____

(d) Does the applicant suffer from a degree of deafness which would prevent his hearing the ordinary sound signals? _____

5. Has the applicant any deformity or loss of members which would interfere with the efficient performance of his duties as a driver? _____

6. Does he show any evidence of being addicted to the excessive use of alcohol, tobacco or, drugs? _____

7. Is he generally fit as regards (a) bodily health, and (b) eye sight? _____

8. Marks of identification _____

**FIRST SCHEDULE**
**Form B. contd.**

I certify, that to the best of my knowledge arid belief the applicant is the person herein above described and that the attached photograph is a reasonably correct likeness of the applicant.

Signature_____

(Space for photograph),. Name _____

Designation_____

## Note:—

Special attention should be directed to distant-vision and to the condition of the arms and hands and the joints of both extremities.

**THE FIRST SCHEDULE—FORM C**
**FORM C**
**[See section 8(1)]**
**DRIVING LICENCE**

No_____ 19 _____

(Name) _____

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son/daughter of (father's name) _____
of (permanent address) _____

**Signature or thumb-impression**

Photograph 1[ .. ]

is licensed to drive, throughout the Province 1[name of the Province] of vehicles of the following description:—

1. Motor cycle.
2. Motor car.
3. Motor cab.
4. Delivery van.
5. Light transport vehicle.

(f) Heavy transport vehicle.
(g) Locomotive.
(h) Tractor.
(i) Invalid carriage.
(j) Road-roller.
(k) A motor vehicle hereunder described.

1. The words "if necessary, omitted by Ord: No. VIII of 1978.
2. Subs by P.O. 4 of 1975.

**FIRST SCHEDULE contd.**
**FORM C-contd.**

He is also authorized to drive as a paid employee.* This licence is valid from . . . . . to . . . . . .
(To be struck out if in applicable).

**Signature and designation of Licensing**

*Authority.*

Date . . . . . 19 . . . . . .

*Authorisation to drive public service vehicle*— So long as this licence is valid and is

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renewed from time to time, the holder is authorized to drive a public service vehicle within the Province of 1[ name of the Province. ]

*Signature and designation of prescribed Authority.*

Date . . . . . 19

1. The words "West Pakistan", the words "name of the Province ", sub. by P.O. 4 of 1975.

**THE FIRST SCHEDULE-contd**
**FORM C—(contd).**

| **This licence is hereby renewed up to** | Signature of Licensing Authority | |
|---|---|---|
| the . . . . . .. . . . . day of . . . . . .. 19<br>the . . . . . .. . . . . day of . . . . . .. 19<br>the . . . . . .. . . . . day of . . . . . .. 19<br>the . . . . . .. . . . . day of . . . . . .. 19<br>the . . . . . .. . . . . day of . . . . . .. 19 | . . . . . ..<br>. . . . . ..<br>. . . . . ..<br>. . . . . ..<br>. . . . . .. | |

**ENDORSEMENTS**

| Date | Section and Rule | Fine or other punishment | Signature of Endorsing Authority | |
|---|---|---|---|---|
| | | | | |

**THE FIRST SCHEDULE-contd**
**FORM D**
**[See section 9]**
**FORM OF APPLICATION FOR THE ADDITION OF A NEW CLASS OF VEHICLE TO A DRIVING LICENCE.**

I hereby apply for the addition of the following class/ classes of motor vehicles to the attached licence:—

1. Motor cycle.

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2. Motor car.
3. Motor cab.
4. Delivery van.

(e) Light transport vehicle.
(f) Heavy transport vehicle.
(g) Locomotive.
(h) Tractor.
(i) Road-roller.
(j) Invalid carriage.
(k) Motor vehicle of a specified description.

*I enclose (a) a medical certificate,
(b) three copies of a recent photograph.

*Required only where the applicant is not entitled to drive as a paid employee or a transport vehicle and now wishes to do so.

**Date ..... 19**

*Signature of applicant.*

**THE FIRST SCHEDULE-contd**
**FORM E**
**[See section 12(2)]**
**FORM OF APPLICATION FOR RENEWAL OF DRIVING LICENCE.**

I hereby apply for a renewal of the licence under the 1 [Provincial] Motor Vehicles Ordinance, 1965 which was issued to me on the …… by ……. (state title of Licensing Authority).

I hereby declare that I am not subject to any disease or disability likely to cause my driving of a motor vehicle to be a source of danger to the public.

Date …… 19. *Signature of applicant.*

1. Subs, for the words "West Pakistan", the word "Provincial" by P.O. 4 of 1)'

**THE FIRST SCHEDULE -contd.**
**FORM F**
**[See section 25(1)**
**FORM OF APPLICATION FOR THE REGISTRATION OF MOTOR VEHICLE.**

1. Full name, name of father, and address of person to be registered as registered owner ……
2. Class of vehicle ……...
3. Type of body ……...

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4. Maker's name ……...
5. Year of manufacture ……...
6. Number of cylinders ……...
7. Horse power ……...
8. Maker's classification or, if not known, wheel-base ……
9. Chassis number ……...
10. Engine number ……...
11. Seating capacity (including driver) ……
12. Unladen weight …….…..
13. Particular of previous registration and registered No. (if any)

Additional particulars to be completed only in the case of transport vehicle other than motor cabs

14. Number, description and size of tyres—

1. front axle ……...
2. rear axle ……...
3. any other axle ……

**FIRST SCHEDULE -contd.**
**FORM F-contd.**

1. Maximum laden weight . . . . . lbs.
2. Maximum axle weight—
3. front axle . . . . . lbs.
4. rear axle . . . . . lbs.
5. any other axle . . . . . lbs.

The above particulars are to be filled in for a rigid frame motor vehicle of two or of three axles, for semi-trailer of are articulated vehicle of three axles or, to the extent applicable, for a trailer (other than the trailer to be registered as part of an articulated vehicle), as the case may be, Where a second trailer or additional trailers are to be registered with an articulated motor vehicle, the following particulars are to be furnished for each such trailer.—

1. Type of body
2. Unladen weight— — ——
3. Number, description and size of tyres or the axle —
4. Maximum axle weight-—-

*Signature of applicant.*
Date 19
*Explanation*—An articulated vehicle means a tractor to which a trailer is attached in such

Unofficial Copy

a manner that part of the trailer is superimposed on and part of the weight of the trailer is borne by the tractor.

*Note:*— The motor vehicle above described is held by the person to be registered as the registered owner, under a hire-purchase agreement with.—

Signature of owner

*Signature of Hire-Purchase Company.*

**THE FIRST SCHEDULE—contd.**

**FORM G**

**[See section 25 (2) and 41 (2)]**

**FORM OF CERTIFICATE OF REGISTRATION**

Registered Number

Brief description of vehicle

{e. g., Ford touring car, Chevrolet 23 seater bus, Albion lorry, Trailer, etc). Name, name of father, and address of Registered owner . . . . . .

. . . . . .

*Signature of Registering Authority.*

Transferred to

*Signature of Registering Authority.*

Transferred to

*Signature of Registering Authority.*

Detailed Description.

1. Class of vehicle _____
2. Maker's name _____
3. Type of body _____
4. Year of manufacture _____
5. Number of cylinders _____
6. Chassis Number _____
7. Engine Number _____
8. Horse power _____
9. Maker's classification or, if not known, wheel base _____
10. Seating capacity (including driver) _____
11. Unladen weight _____

**FIRST SCHEDULE—contd.**

**FORM G -contd.**

*Additional particulars in the case of all transport vehicle other than motor cabs—*

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1. Registered laden weight _____
2. Number, description and size of tyres _____
3. front axle _____
4. rear axle _____
5. any other axle _____

14. Registered axle weight ____

1. front axle _____ lbs.
2. rear axle _____ lbs.
3. any other axle _____ lbs.

*Additional particulars of alternative or additional trailer or trailers Registered with an articulated vehicle—*

1. Type of body _____
2. Unladen weight _____
3. Number, description and size of tyres on the axle _____
4. Registered axle weight _____ lbs.

Date 19 *Signature of Registering Authority*
*Note:*—The motor vehicle above described is held by the person registered as the registered owner under a hire-purchase agreement with
Date _____ 19 *Signature of Registering Authority.*

**THE FIRST SCHEDULE—contd.**
**FORM H**
**[See section 37]**
**DOCUMENT TO BE FURNISHED BY THE MAKER OR AUTHORIZED ASSEMBLER IN THE CASE OF TRANSPORT VEHICLES OTHER THAN MOTOR CABS.**

Certified that the vehicle Chasis No _____ and Engine No _____ manufactured by _____ in the year _____ has a wheel base of _____ and is designed for maximum weights as follows when fitted with the tyre-equipment specified below:—

Maximum laden weigth _____lbs.
Maximum weight front axle _____lbs.
Maximum weight rear axle- _____lbs.
Maximum weight any other axle _____lbs.

Tyres--

Front wheels _____
Rear wheels _____

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Other wheels _____
Date_____ 19. *Signature of maker or authorized assembler.*

## Special certificate to be furnished by an assembler—

Certified that I am authorised by the maker of the vehicle described above to issue this certificate.
*Signature of authorised assembler.*

**THE FIRST SCHEDULE—contd.**
**FORM I**
**[See section 39(1) and 40(2)].**
CERTIFICATE OF FITNESS (APPLICABLE IN THE CASE OF TRANSPORT VEHICLES ONLY

Vehicle No. _____ is certified as complying with the provisions of Chapter VI of the 1[Provincial] Motor Vehicles Ordinance, 1965, and the rules made there-under . The certificate will expire on _____
Signature and Designation of
Inspecting Authority.
Date_____ 19

The certificate of fitness is hereby renewed:—
Upto _____ 19 _____
*Signature of Inspecting Authority.*
Upto _____ 19 _____
*Signature of Inspecting Authority*
Upto _____ 19 _____

**Signature of Inspecting Authority**

1. Subs for "West Pakistan" by P.O. 4 of 1975.

**FIRST SCHEDULE -contd.**
**1[“FORM J”**
**See SECTION 116-A(2)**

| | | |
|---|---|---|
| Ticket No. | Ticket No.<br>Book No. | Ticket No.<br>Book No. |

| Book No. | | |
|---|---|---|
| Name of offender _____ | Name of offender _____ | Name of offender _____ |
| Address of offender _____ | Address of offender _____ | Address of offender _____ |
| Registration No. of scooter/motor cycle/motor rickshaw _____ | Registration No. of scooter/motor cycle/motor rickshaw _____ | Registration No. of scooter/motor cycle/motor rickshaw _____ |
| Particulars of offence _____ | Particulars of offence _____ | Particulars of offence _____ |
| Date of charge_____ _____ | Date of charge_____ _____ | Date of charge_____ _____ |
| Name of Court having jurisdiction _____ Name of Police Station to which intimation of payment of fine is to be made _____ | Name of Court having jurisdiction _____ Name of Police Station to which intimation of payment of fine is to be made _____ | Name of Court having jurisdiction _____ Name of Police Station to which intimation of payment of fine is to be made _____ |
| Signature/thumb-impression mark of the offender.- *Note:-* The amount of fine specified in this ticket is to be deposited within seven day at any post office in 2[Province] or in any branch of the National Bank of Pakistan, or forwarded by money order to the Court or police station specified in this ticket. | Signature/thumb-impression mark of the offender.- *Note* —The amount of fine specified in this ticket is to be deposited within seven days at any post office in 2[province] or in any branch of the National Bank of Pakistan, or forwarded by money order to the Court or police station specified in this ticket. | Signature/thumb-impression mark of the offender.- *Note:-* The amount of fine specified in this ticket is to be deposited within seven days at any post office in 2[Province] or in any branch of the National Bank of Pakistan, or forwarded by money order the Court or police station specified in this ticket.] |

1. Form "J" ins. by W. P. Ord: XXII of 1969 s.4

Subs: by P. O. 4 of 1975, for the words "West Pakistan

**FIRST SCHEDULE -contd.**
**1[“FORM K”]**
**See SECTION 116-A(2)**

| Ticket No. Book No. | Ticket No. Book No. | Ticket No. Book No. |
|---|---|---|
| Name of offender _____ | Name of offender _____ | Name of offender _____ |

| | | |
|---|---|---|
| Address of offender _____<br>Registration No. of motor car/taxi _____<br>Particulars of offence _____<br>Date of charge_____<br>Name of Court having jurisdiction _____<br>Name of Police Station to which intimation of payment of fine is to be made .<br>Signature/thumb-impression mark of the offender.-<br>*Note:-* The amount of fine specified in this ticket is to be deposited within seven day at any post office in 2[Province] or in any branch of the National Bank of Pakistan, or forwarded by money order to the Court or police station specified in this ticket. | Address of offender _____<br>Registration No. of motor car/taxi _____<br>Particulars of offence _____<br>Date of charge_____<br>Name of Court having jurisdiction _____<br>Name of Police Station to which intimation of payment of fine is to be made .<br>Signature/thumb-impression mark of the offender.-<br>*Note:-* The amount of fine specified in this ticket is to be deposited within seven day at any post office in 2[Province] or in any branch of the National Bank of Pakistan, or forwarded by money order to the Court or police station specified in this ticket. | Address of offender _____<br>Registration No. of motor car/taxi _____<br>Particulars of offence _____<br>Date of charge_____<br>Name of Court having jurisdiction _____<br>Name of Police Station to which intimation of payment of fine is to be made .<br>Signature/thumb-impression mark of the offender.-<br>*Note:-* The amount of fine specified in this ticket is to be deposited within seven day at any post office in 2[Province] or in any branch of the National Bank of Pakistan, or forwarded by money order to the Court or police station specified in this ticket. |

1. Form "K", ins. by W.P. Ord: No. XXII of 1969 s. 4.
2. Subs: for "West Pakistan", by P. O. 4 of 1975.

## THE SECOND SCHEDULE

**[See section 7(5)] -**

*1. Disease and disabilities absolutely disqualifying a person for obtaining a licence to drive a motor vehicle.*

1. Epilepsy.
2. Lunacy.
3. Heart disease likely to produce sudden attack of giddiness or fainting.
4. Inability to distinguish with each eye at a distance of twenty five yards in good daylight (with the aid of glasses, if worn) a series of seven letters and figures in white on a black ground of the same size and arrangement as those of the registration mark of a motor car.

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5. A degree of deafness which prevents the applicant from hearing, without hearing aids, the ordinary sound signals.
6. Colour blindness or inability readily to distinguish the pigmentary colours red and green.
7. Night blindness.

*11 Diseases and disabilities absolutely disqualifying a person for obtaining a licence to drive a public service vehicle.*

1. Leprosy.

## THE THIRD SCHEDULE
**[See sections 7(6) and 18 (5)]**
## TEST OF COMPETENCE TO DRIVE
## PART I

The candidate shall satisfy the person conducting the test that he is able to—

1. start the engine of the vehicle;
2. move away straight ahead or at an angle;
3. overtake, meet or cover the path of other vehicle and, take an appropriate course ;
4. turn right and left corners correctly;
5. stop the vehicle in an emergency and normally, and in the latter case bring to rest at an appropriate part, of the road;
6. drive the vehicle backwards and whilst so doing enter a limited opening either to the right or left;
7. cause the vehicle to face in the opposite direction by means of forward and reverse gears;
8. give by hand and by mechanical means (if fitted to the vehicle) or in the case of a disabled driver for whom it is impracticable or undersirable to give signals by hand, by mechanical means in a clear and unmistakable manner, appropriate signals at appropriate times to indicate his intended actions;
9. act correctly and promptly on all signals given by traffic signs and traffic controllers, and take appropriate action on signs given by other road users.

*Note:*— (i) Requirements 6 and 7 are not applicable in the case of a motor cycle or tricycle not equipped with means for reversing.

(ii) Requirements 6, 7 and 8 are not applicable in the case of invalid carriages.

A candidate shall be deemd to have failed in the test, if during a road test, he does any three or more of the following acts or any one of such acts more than once:—

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## THE THIRD SCHEDULE-contd.

A. Starting—

1. Fails to look around before starting.
2. Noisy and uncertain gear shifting.
3. Stays too long in low or second gear.
4. Unnecessary fast get away.
5. stalls motor.
6. Fails to signal.

B. Stopping—

1. Fails to signal.
2. Slows down too suddenly.
3. Fails to use rear-view mirror.

C. Turning—

1. Fails to get into proper lane in time.
2. Fails to signal.
3. Fails to check traffic.
4. Swings wide to the right or cuts corners to the left.
5. Fails to complete turn in proper lane.

D. Backing—

1. Fails to look behind before and while backing.
2. Uncertain steering when backing.

E. parking.

1. Hits with a jolt other cars in parking.
2. Climbs curb in parking.
3. Parks too far from curb.

## THIRD SCHEDULE—contd.

1. Forgets to set emergency brake.
2. Parks too fast for proper control.

F. Traffic Signals.

1. Fails to notice signals.

2. Runs through a stop signal.

G. Signs.

1. Does not come to a stop on a signal or at a sign requiring him to do so.
2. Does not notice caution or warning signs.

(3) Fails to observe direction signs.

H. passing.

1. Does not await clear distance ahead.
2. Passes a vehicle in intersection when unlawful or dangerous to do so.
3. Passes vehicle on right where unlawful.
4. Fails to use horn when necessary.
5. Too little speed in overtaking.
6. Cuts in too quickly ahead.

I. Hills—

1. Cannot shift gears on an upgrade or when going down.
2. Cannot stop and start on hill without rolling backward.
3. Descends in neutral.

J. Speed.

- Drives at speeds greater than ability warrants.
- Too fast over rough roads, around corners, through blind intersections and in business districts.

**THE THRID SCHEDULE—contd.**

3. Tendency to lag and catch up.
4. Slows down while passing through an intersection or around a curve, rather than before reaching.

(5) Hinders traffic by driving slowly in centre of street.

K. Attention.

5. Looks down when shifting gears.
6. Turns his head when talking.
7. Fails to notice dangerous spots.
8. Does not give complete attention to all traffic intersection.

L. Attitude towards other:—

9. Depends on others for safety.

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10. Takes right of way at intersection when not entitled thereto.
11. Inconsiderate to pedestrians.

(4) Fails to anticipate what others may do.

M. Miscellaneous.

12. Stalls at intersections.
13. Fails to keep in correct lane.
14. Follows too closely other vehicles.
15. Uses horn too much.
16. Shifts into wrong gear, such as reverse instead of second.
17. Passes standing street cars where unlawful.
18. Speeds up when being overtaken.
19. Reacts slowly in emergency.

**THIRD SCHEDULE contd.**

(9) Careless about using proper hand signals or does not make signals clearly.

20. Unduly nervous.
21. Over -cautions.
22. Reckless or careless.
23. General in experience.

# PART II

(TEST OF TRAFFIC LAWS AND CORRECT ROAD BEHAVIOUR OF APPLICANT)

The candidate shall satisfy the Examiner that he is cognizant of the provisions of sections 85,86, 87,88 and 89 of the Tenth Schedule, that he knows the meaning of the traffic signs specified in the Ninth Schedule and the general provisions of the Highway Code.

**PART III**
**[TEST OF PHYSICAL FITNESS)**

The candidate shall satisfy the Examiner that he is not subject to any disease or disability likely to cause his driving of a motor vehicle to be a source of danger to the public and particularly that—

24. he can read from a distance of twenty-five yards a registration plate bearing letters and figures three inches high or decipher other similar letters or figures of the same size from a distance of twenty-five yards with or without spectacles.,
25. his field of vision is not less than 130 degree;
26. he can readily distinguish pigmentary colours, red and green;
27. he can hear ordinary sound signals without the help of hearing aids;
28. he is not suffering from epilepsy, paralysis, serious heart disorders or mental disorders.

**THE FOURTH SCHEDULE**
**[See sections 15 (1) and 40 (1) and (3)]**
**AUTHORITIES ENTITLED TO GRANT LICENCE TO DRIVE AND TO REGISTER MOTOR VEHICLES, THE PROPERTY OR FOR THE TIME BEING UNDER THE EXCLUSIVE CONTROL OF THE 1[FEDERAL] GOVERNMENT, AND REGISTRATION MARKS FOR SUCH VEHICLES**

# PART A

The authorities specified in the second column may grant licences in respect of vehicles, the property or for the time being under the exclusive control of the Department of the 1Federal] Government specified in the first column.

Defence Department of the 1[Federal] Government

1. District Commanders.

29. Commanders of independent brigades.
30. Officers commanding units having mechanically propelled vehicles in their charge.
31. Commanders, Pakistan Engineers.

**PART B**

The authorities specified in the second column may register motor vehicle the property or for the time being under the exclusive control of the Department of the 1[Federal] Government specified in the first column and may grant certificates of fitness in respect of such vehicles.

| | | |
|---|---|---|
| | Defence Department of the 1[Federal] Government. | The Master-General of the Ordinance in Pakistan or any person authorised by him in this behalf. |
| | | |

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**PART C**

Registration marks for vehicles registered under section 40.
A broad arrow followed by not more than six figures, or a broad arrow followed by a single letter and not more than five figures.

1. Subs, for "Central", by P. O. 4 of 1975.

**THE FIFTH SCHEDULE**
**[See section 20 (2) and (3) and 116]**
**OFFENCES ON CONVICTION OF WHICH AN ENDORSEMENT SHALL BE MADE ON THE LICENCE OF THE PERSON AFFECTED.**
**PART A**

32. Driving when disqualified (section 19).
33. Failing to stop on the occurrence of an accident (section 92).
34. Obtaining or applying for a licence without giving particulars of endorsement (section 97).
35. Driving recklessly or dangerously (section 99).
36. Driving while drunk or under the influence of any drug (section 100)..
37. Abetment of an offence under section 99 or section 100.
38. Taking part in unauthorised race or trail of speed (section 103).
39. Altering a licence or using an altered licence.
40. Any offence punishable with imprisonment in the commission of which a motor Vehicle was used.

**PART B**

41. Driving without a licence, or without a licence which is effective, or without a licence applicable to the vehicle driven (section 3).
42. Allowing a licence to be used by another person (section 6).
43. Driving at excessive speed (section 98).
44. Driving when mentally or physically unfit to drive (section 101).
45. Abetment of an offence punishable under section 98 or 101.
46. Refusing or failing within specified time to produce licence (section 90).

47. Failing to stop when required (section 92).
48. Driving an unregistered vehicle (section 23).
49. Driving a transport vehicle not covered by a certificate of fitness (section 39).
50. Driving in contravention of any rule made under section 74 (2) (g) relating to speed governors.

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51. Driving a vehicle exceeding the permissible limit of weight (section 107).
52. Failure to comply with a requisition made under section 77.
53. Using a vehicle in unsafe condition (section 104).
54. Driving a transport vehicle in contravention of section 44.

1[THE SIXTH SCHEDULE]
[See section 25 (3) and 30 (2)]
REGISTRATION MARKS

1. The sixth schedule, omitted by Ord. XXXVI of 1981.

**1THE SEVENTH SCHEDULE]**
**[See section 41]**
REGISTRATION MARKS FOR VEHICLES REGISTERED UNDER SECTION 41.

1. Omitted by W. P. Ord. XXXIX of 1965 section 3

**1[THE EIGHT SCHEDULE]**
**[See section 75]**
**LIMITS OF SPEED FOR MOTOR VEHICLES.**

| | Class of vehicles | Maximun speed in Kilometers per hour. |
|---|---|---|
| | 1. Passengers vehicle , that is to say, vehicles constructed soley for the carriage of passengers and their effects-<br>(a) if all the wheels are fitted with peneumatic tyres and the vehicle is not drawing a trailer.- | |
| | (i) if the vehicle is a motor car | 95 |
| | (ii) if the vehicle is a motor-cycle | 70 |
| | (iii) if the vehicle is a motor-cab | 80 |
| | (iv) if the vehicle is a public service vehicle, other than motor-cab, capable of carrying not more than 14 passengers excluding driver. | 70 |

| | | |
|---|---|---|
| | (v) if the vehicle is a public service vehicle capable of carrying more than 14 passengers excluding driver. | 65 |
| | (b) if the vehicle, being motor-car or motor-cab, is drawing a two-wheeled trailer or a laden weight not exceeding 800 kilograms, and if all the wheels of the vehicle are fitted with peneumatic tyres. | 50 |
| | (c) any other vehicle, including rickshaw and an invalid carriage. | |

1. Subs, by Ord. No. VTTT of 1978.

| Class of vehicles | Maximum speed in Kilometers per hour. |
|---|---|
| 2. Goods vehicles, that is to say, constructed or adapted for use for the conveyance of goods- | |
| (a) if all the wheels are fitted with pneumatic tyres and the vehicle is a delivery van and is rot drawing a trailer. | 80 |
| (b) if all the wheels are fitted with pneumatic tyres and the registered laden weight of the vehicle does not exceed 10200 kilograms and the vehicle is not drawing a trailer. | 50 |
| (c) in any other case. | 25 |
| 3. Tractors- | |
| (a) (a) if drawing not more than one trailer and all the wheels of the tractor and trailer are fitted with pneumatic tyres. | 25 |
| (b) in any other case. | 10 |

4. Locomotice, whether drawing a trailer or not10

**1[THE NINTH SCHEDULE]**
**[See sections 79, 81 and 82]**
**TRAFFIC SIGNS**

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## Part A – Mandatory Signs

(1) The figure 20 is given merely as an example. The actual figures will be as prescribed in each case where this sign is used.
(2) The general design of the post is given for guidance.
(3) Where the speed limit is, or is to be, imposed only on a certain class or classes of motor vehicles the class or classes will be specified on the "definition plate". Where in addition to a general speed limit applicable to other motor vehicles a special speed limit is, or is to be imposed on vehicles of a certain class or classes, the general speed limit will be specified on the disc and the special speed limit together with the class or classes or vehicles to which it applies will be specified on the "definition plate".

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# THE NINTH SCHEDULE – Contd.

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*Note*— Sign No. 5 as here setforth may be simplified by instructions inscribed upon a definition plate placed below it as in general arrangement setforth in sign No. 1 of this Part. Upon the definition plate may be setforth the times during which parking is prohibited. In like manner an arrow head inscribed on the definition plate will indicate that parking is prohibited on that part of the street or road lying to the side of the sign to which the arrow-head points.

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# THE NINTH SCHEDULE – Contd.

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**THE TENTH SCHEDULE**
**[See sections 81 and 82]**
**DRIVING REGULATIONS**

55. The driver of a motor vehicle shall drive as close to the left hand side of the road as may be expedient, and shall allow all traffic which is proceeding in the opposite direction to pass him on his right hand side.
56. Except as provided in regulation 3, the driver of a motor vehicle shall pass in the right of all traffic proceeding in the same direction as himself.
57. The driver of a motor vehicle may pass to the left of a vehicle the driver of which having indicated an intention to turn to the right has drawn to the centre of the road and may pass a tram-car or other vehicle running on fixed rails, whether travelling in the same direction as himself or otherwise, on either side:

Provided that in no case shall he pass a tram-car at a time or is a manner likely to cause danger or inconvenience to other users of the road or pass on the left hand side of a tram-car, which, when in motion would be travelling in the same direction as himself, while the tram-car is at rest for the purpose of setting down or taking up passengers.

4. The driver of a motor vehicle shall not pass a vehicle travelling in the same direction as himself—

58. if his passing is likely to cause inconvenience or danger to other traffic proceeding in any direction; or
59. where a point or corner or a hill or an obstruction of any kind renders the road ahead not clearly visible.
60. The driver of a motor vehicle shall not,. when being overtaken or being passed by another vehicle, increase speed or do anything in any way to prevent the other vehicle from passing him.
61. The driver of a motor vehicle shall slow down when approaching a road intersection, a road corner, and shall not enter any such intersection or

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junction until he has become aware that he may do without endangering the safety of persons thereon.

62. The driver of a motor vehicle shall on entering a road intersection if the road entered is a main road designated as such, give way to the vehicles proceeding along that road, and in any other case give way to all traffic approaching the intersection on his right hand.

8. The driver of a motor vehicle shall, when passing or meeting a procession or a body of troops or police on the march or when passing workmen engaged on road repair, at a speed not greater than fifteen miles an hour.

9. The driver of a motor vehicle shall—

63. when turning to the left, drive as close as may be to the left hand side of the road from which he is making the turn and of the road which he is entering;
64. when turning to the right, draw as near as may be to the centre of the road along which he is travelling, and cause the vehicle to move in such a manner that—

(i) as far as may be practicable, it passes beyond, and so as to leave on the driver right hand, a point formed by the intersection of the centre lines of the intersection roads, and

(ii) it arrives as near as may be at the left hand side of the road which the driver is entering.

## THE ELEVENTH SCHEDULE
**[See section-83]**
## SIGNALS

65. When about to turn to the right or to drive to the right hand side or the road in order to pass another vehicle or for any other purpose, a driver shall extend his right arm in a horizontal position outside of and to the right of his vehicle with the palm of the hand turned to the front.
66. When about to turn to the left or to drive to the left hand side of the road, a driver shall extend his right arm and rotate it in an anti-clockwise direction.
67. When about to slow down, a driver shall extend his right arm with the palm downward and to the right of the vehicle and shall arm so extended up and down several in such a manner that the signals can be seen by the driver of any vehicle which may be behind him.

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68. When about to stop, a driver shall raise his right fore arm vertically outside of and to the right of the vehicle, palm to the front.
69. When a driver wishes to indicate to the driver of a vehicle behind him that he desires that driver to overtake him he shall extend his right arm and hand horizontally outside of and to the right of the vehicle and shall swing the arm backwards and forwards in a semi circular motion.

**1[THE TWELFTH SCHEDULE.**
**[See section—116-A.]**

| | Serial No. | Section | Offence |
|---|---|---|---|
| | 1 | 3/112 | Driving without licence. |
| | 2 | 4/112 | Driving below age of eighteen years. |
| | 3 | 5/112 | Owner of motor vehicle permiting contravention of section 3 or section 4. |
| | 4 | 23/112 | Driving a motor vehicle which is not registered. |
| | 5 | 39/112 | Driving a transport vehicle which does not carry a fitness certificate. |
| | 6 | 82/112 | Disobedience of traffic signs, singals or directions of a police officer engaged in regulation of traffic. |
| | 7 | 85/112 | Leaving vehicle in dangerous condition. |
| | 8 | 86/112 | Riding on. running board. |
| | 9 | 87/112 | Obstruction of driver. |
| | 10 | 88/112 | Causing or allowing a motor vehicle to remain stationery in a public place in contravention of provisions of section 88. |
| | 11 | 89/112 | Carrying three persons on a two wheeled motor cycle. |
| | 12 | 90/112 | Refusal to produce licence, certificate of registration, certificate of fitness or permit. |
| | 13 | 101 | Driving motor vehicle when suffering from disease or disability. |
| | 14 | 105 | Sale of motor vehicle in or alternation of motor vehicle to a condition contravening the provisions of the West Pakistan Motor Vehicle Ordinance, 1965. |
| | 15 | 107 | Driving motor vehicle exceeding permissible weight. |
| | 16 | 111 | Disobedience of orders, obstruction and refusal |

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| | | | |
|---|---|---|---|
| | | | of information"]. |

1. The twelfth schedule ins. by Ord. XXII of 1969. s. 5.

**1[THE THIRTEENTH SCHEDULE]**
**(See section-50, 53 and 67)**

Scale of compensation payable on death of or injury to a passenger in a stage carriage or contract carriage.

| Serial No. | Death or Injury | Amount of Compensation |
|---|---|---|
| | | Rs. |
| 1. | Death | 16,000 |
| 2. | Loss of right arm above or at the elbow .. | 5,000 |
| 3. | Loss of left arm above or at the elbow .. | 4,000 |
| 4. | Loss of right arm below the elbow .. | 4,000 |
| 5. | Loss of leg at or above the knee .. | 5,000 |
| 6. | Loss of left arm below the elbow .. | 3,600 |
| 7. | Loss of leg below the knee .. | 5,000 |
| 8. | Loss of both legs .. | 10,000 |
| 9. | Permanent loss of hearing .. | 5,000 |
| 10. | Loss of one eye .. | 6,000 |
| 11. | Loss of both eyes .. | 10,000 |
| 12. | Loss of thumb .. | 3,200 |
| 13. | Loss of all toes of one foot .. | 4,000 |
| 14. | Loss of index finger .. | 3,200 |

1. Ins. by Ord. No. IX of 1970 and Subs. by Ord. VIII of 1978.

| Serial No. | Death or Injury | Amount of Compensation |
|---|---|---|
| | | Rs. |
| 15. | Loss of great toe .. | 3,000 |
| 16. | Loss of any finger other than laden finger .. | 3,000 |
| 17. | Permanent disfiguration of the face or head. | 4,000 |
| 18. | Fracture or dislocation of a bone .. | 3,000 |
| 19. | Emasculation .. | 4,000 |

| | | |
|---|---|---|
| 20. | **Loss of one or more teeth** .. | 1,000 |
| 21. | Any injury which endangers life or which causes the sufferer to be, during the space of twenty days severe bodily pain, or renders him unable to follow his ordinary pursuits. .. | 2,000 |
| 22. | Medical expenses for an injury not specified in the schedule. .. | 2,000 |
| | | actual expenses certified by the Medical Officer. |

**THE FOURTEEN SEHFDULE**
**[See section 122]**

# ENACTMENTS REPEALED

| Serial No. | Short title | No. and year | Extent of repeal | |
|---|---|---|---|---|
| 1. | The Motor Vehicles Act 1939 | IV of 1939 | The whole, except Chapters VII and VIII and section 125. | |
| 2. | The Motor Vehicles (Sindh Amendment) Act, 1948. | Sindh XIV of 1948 | The whole. | |
| 3. | The Motor Vehicles (North-West Frontier Amendment) Act, 1950. | N.W.F.P. XII of 1950 | The whole. | |
| 4. | The Motor Vehicles (Sindh Amendment) Act, 1951. | Sindh XVIII of 1951 | The whole. | |
| 5. | The Motor Vehicles (North-West Frontier Province (Amendment) Act, 1953. | N.W.F.P. XIX of 1958 | The whole. | |
| 6. | The Motor Vehicles (West Pakistan Amendment Act, 1958. | West Pakistan XIX of 1958. | The whole. | |
| 7. | The Motor Vehicles (West Pakis-tan Amendment) | West Pakistan Ordinance XXX | The whole. | |

| | | | | |
|---|---|---|---|---|
| | Ordinance, 1960. | of 1960 | | |
| 8. | The Motor Vehicles (West Pakistan Amendment) Ordinance, 1963 | West Pakistan Ordinance XI of 1963 | The whole. | |

1. Subs, for the word "thirteenth" by Ord. No. IX of 1970, and the words in crotchets was earlier subs, for "Twelfth by W. P. XXII of 1969